

Bihar Chaukidari Manual

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State of Bihar - Act

Bihar Chaukidari Manual

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Bihar Chaukidari Manual

Rule BIHAR-CHAUKIDARI-MANUAL of 1924

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Bihar Chaukidari Manual

Throughout this Manual the words "District Magistrate" may be taken to include any Magistrate to whom the powers of the District Magistrate in that particular respect have been legally delegated.

The Chaukidari "Village"

1.

Under the provisions of Section 4 of Bengal Act, VI of 1870 the District Magistrate may, from time to time, by an order, in writing, declare any local area or group of dwellings within his jurisdiction to be a 'village' for the purposes of the Act. In the present Manual such "villages" are referred to as Unions.

2.

For administrative purposes under the Act, the area of each district shall ordinarily be divided into Unions.

3.

The Union should be a compact Union, neither so small that it can be controlled by village cliques, nor so large that the panchayat will be out of touch with the villages. Revenue survey 'mauzas' should not be divided between different Unions, and so far as practicable, Unions should not be divided by large rivers, swamps, jungles etc., which would impede their supervision by one panchayat.

A suitable size for a Union is from 10 to 12 square miles, or a population of from 6,000 to 8,000 people, but such standards should not be rigidly applied. Unions should be constituted in the light of the ascertained local conditions, and these may vary in different parts of the same district.

4.

Register I of Unions and Register 1-A of chaukidari chakaran lands resumed shall be maintained and distributed to sub-divisional offices and thanas.

Unions shall be named after the principal village within them and shall be serially numbered according to their geographical sequence.

A complete list as possible shall be shown in column 3 of Register I of all the inhabited villages comprised in the Unions, including all the tolas, paras, etc. which are locally known by distinctive names. The information as to such villages contained in the census registers, postal directories etc. should be utilised in preparing the register, after verification by local inquiry.

The entries in this register should be verified at intervals by inquiry locally in Order to check subsequent changes in villages, if any, and the whole registers should be revised after such census.

5.

Thana maps shall be maintained showing the different Unions in coloured outlines, together with their names and numbers.

A copy of such a map shall be supplied to each thana as concerns its particular jurisdiction.

The Panchayat

6.

Under sub-section (1) of Section 3 of Bengal Act VI of 1870 the District Magistrate, by an Order in writing, may appoint not less than three nor more than five, residents in any village to be the panchayat thereof.

In the Unions constituted under the Act, the number of the members of the panchayat shall not ordinarily be less than five. Sanads of appointment shall be given to members of the panchayats in Form A.

7.

Under Section 3A of the Act, the District Magistrate with the sanction of the Commissioner, and by an Order in writing, may delegate its power of appointment, and if unable to exercise it personally, he shall do so to Sub-divisional Officers as regards the appointment of all members of the panchayat within their respective jurisdictions. If there is no Officer in independent charge of the Sadar Sub-Division, he shall himself appoint the chief members of the panchayats in it by whatever designation they are locally known, and may delegate to the Joint or Deputy Magistrate in charge of the department at headquarters the power of appointment of ordinary members.

8.

Under Section 9 of the Act, the term of appointment of a member of the panchayat is three years.

Upon the expiry of this terms in any thana a general revision of the membership of the panchayats shall be made after local inquiry and report by some Magisterial Officer.

9.

Upon the occurrence of a casual vacancy in the membership of the panchayat the remaining members shall forthwith report the same to the District Magistrate or Sub-Divisional Officer, as the case may be, and shall at the same time submit the nomination of suitable successor.

10.

If no such nomination is submitted by the panchayat of their own motion, the District Magistrate or the Sub-Divisional Officer, as the case may be, is bound by law (Section 6) to call upon them, in writing, to do so. Such notice to nominate shall be sent to the remaining members of the panchayat direct, and not through the Police.

The notice shall be in the printed Form B.

11.

Upon receipt of the nomination of the other members of the panchayat, either under Rule 9 or 10, the District Magistrate, or the Sub-Divisional Officer, as the case may be, after such enquiry by a Magisterial Officer as he may deem

necessary, shall appoint the nominee, if he considers him a fit and proper person.

12.

If {for reasons to be recorded in writing) the District Magistrate or the Sub-Divisional Officer, as the case may be, considers the nomination improper, or if no such nomination is received within the time prescribed, the District Magistrate or the Sub-Divisional Officer, as the case may be, shall appoint a member of the panchayat, after such inquiry by a Magisterial Officer as he may deem necessary.

13.

Penalties for the refusal to undertake or for the wilful omission to perform, the duties of a member of the panchayat are prescribed in Section 8 of the Act. They should be enforced with discretion. The position of a member of the panchayat should be conferred as a dignity, not inflicted under penalties as a punishment. Under Section 10 of the Act, any member of a panchayat may be removed or discharged by the District Magistrate or the Sub-Divisional Officer, as the case may be, by a written Order.

14.

The legal qualification of a member of the panchayat are defined in Section 7 of the Act. It is most desirable to let it be known that appointment to the panchayat should be considered an honour, and nominees should be taken from among the respected and influential residents. Educational qualifications are desirable but they should not be regarded as essential.

15.

The treatment of members of the panchayat with courtesy by all Officers should be insisted upon. The panchayat should be given to feel that they occupy a responsible position in the Union, and will be looked to by the district authorities for information regarding it and for assistance in the administration of it. They should be told that they are entitled to communicate with the District Magistrate and Sub-Divisional Officer direct on any subject of importance to the Union, and should be encouraged to do so.

16.

Officers when on tour should take the opportunity of seeing and becoming personally acquainted with as many members of the panchayat as possible, and those of the neighbourhood should be invited to attend at the local camps; but the practice of calling in the panchayat in batches to the thana or elsewhere should be avoided, it is disliked by the panchayats, and little good can be effected thereby.

17.

Every effort should be made to make the panchayat work as a body, with common duties and responsibilities except in so far as specific functions are allotted to any one member. The tendency is for the whole work of the panchayat, to be left to one man, and for the remaining members to be regarded as cyphers.

18.

All communications between the District Magistrate and the panchayats shall be direct, and not through the Police, but information of all fresh appointments of members of the panchayat shall be separately communicated by the District Magistrate or Sub-Divisional Officer, as the the case may be to the Superintendent of Police in Order that the thana records may be maintained.

19.

Register II of Unions within a Police-Station, Register II-A members of panchayats within a Police-Station (corresponding to registers 3, 4 and 5 of the Union Board Manual, Volume II) shall be maintained in the office of the District Magistrate for the Sadar Sub-Division and in the offices of Sub-Divisional Officers for their respective jurisdictions.

Dafadars

20.

To every Union there shall be appointed one or more dafadars who shall supervise the work of the chaukidars serving in the Union.

The rate of pay of dafadars shall be Rs. 6. Provided that if the number of chaukidars in a Union be not less than 18, the Magistrate (either the District Magistrate or the Sub-Divisional Officer as the case may be) may in his discretion appoint an extra dafadar. Ordinarily, however, when the number of such chaukidars, including the dafadar, exceeds 16, steps should be taken, if possible, to divide the Union into two.

21.

Under Section 3A of the Act, the District Magistrate with the sanction of the Commissioner, and by an Order, in writing, may delegate his power of appointment of dafadars, and, if unable to exercise them personally, he shall ordinarily do so to the Superintendent of Police throughout the district.

21A.

[nQknkj ds in ij fu;qfDr gsrq U;wure rFkk vf/kdre vk;q lhek dze'k% 18 o"kZ ,oa 30 o"kZ gksxh A vuqLwfr tkrh rFkk vuqLwfr tutkrh ds mEehnokjksa ds fy, vf/kdre vk;q lhek 35 o"kZ gksxh A budh fuo`fRr dh vk;q 60 o"kZ gksxh A]

[Added by Notification No. 1573 dated 18.2.1982.]

22.

On the occurrence of a vacancy in the post of dafadar, the local thana shall at once report the fact to the office of the District Magistrate or the Sub-Divisional Officer, as the case may be.

Such vacancies shall also be reported by the panchayat concerned direct to the office of the District Magistrate or the Sub-Divisional Officer, as the case may be, and they shall at the same time forward a nomination of a successor to the post of dafadar, furnishing the following information:-

(a)

Name of nominee.

(b)

Father's name.

(c)

Caste.

(d)

Age.

(e)

Physical condition.

(f)

Residence.

(g)

Is the nominee related to the late dafadar?

(h)

Is his character good?

(i)

Are any of his relation bad characters? If so, details.

(j)

Can he read and write (more than his name only)?

(k)

Thumb prints of nominee.

23.

Upon receipt of such a report, or upon intimation of such a vacancy in any other manner, if no nomination roll has in the meantime been received from the panchayat, they shall be called upon by the District Magistrate or the Sub-Divisional Officer, as the case may be, to nominate within a reasonable time a person to be appointed as dafadar. Such notice to nominate shall be sent direct and not through the police. It shall be in the printed Form C.

24.

Upon receipt of the nomination roll by the District Magistrate or the Sub-Divisional Officer, as the case may be, either under Rule 22 or 25, it shall be forwarded forthwith to the Superintendent of Police, who after such inquiry as he may deem necessary, shall appoint the nominee, if he be found suitable, or if he be not satisfied with the nomination, the Superintendent of Police shall appoint any other person whom he thinks fit.

25.

In either event the Superintendent of Police shall refuse the nomination roll to the District Magistrate or the Sub-Divisional Officer as the case may be, with information as to the person actually appointed, and with a statement of his reason if the nominee of the panchayat be not accepted.

26.

If no nomination by the panchayat is received by the District Magistrate or the Sub-Divisional Officer, as the case may

be, within the time prescribed, the Superintendent of Police shall be informed, and shall be directed to appoint such person as he may see fit, and to inform the District Magistrate or the Sub-Divisional Officer, as the case may be, of the person appointed.

27.

The Superintendent of Police shall issue to the dafadar appointed a Sanad in Form D. Such Sanad shall be forwarded through the local thana concerned, which will thereby be apprised of the appointment made.

28.

Dafadars must be residents of the Union of good character and good physique. If not already permanent resident of the Union, the dafadar must take up such permanent residence within a reasonable time after his appointment. No person residing outside a Union shall be appointed a dafadar, if a suitable resident within the Union is available.

29.

Dafadars should ordinarily be nominated from among pensioned soldiers residing in the Union or from among the chaukidars of the Union if fit for promotion. They should, if possible, be literate, but literacy should not be made an absolute condition of appointment. The class of man required of a chaukidar while exercising authority over the chaukidars under him by dint of superior qualifications. The writer-constable class does not make good dafadars.

30.

A record of dafadars shall be maintained in the office of the District Magistrate or the Sub-Divisional Officer, as the case may be, in the form of Register IIB.

Chaukidars

31.

Under Sections 11 and 12 of the Act, the District Magistrate shall determine the number of chaukidars to be employed in a village and the salaries to be paid to them within the month's limits of Rs. 2 and Rs. 6 provided that, without the sanction of the Commissioner, there shall not be more than one chaukidar for every 60 houses. It is important to note that this calculation is upon the whole village under the Act, i.e. the whole Union.

32.

The unit of calculation for the determination of the number of chaukidars to be entertained should be houses and not persons, and for the purposes of this calculation it must not be forgotten that the dafadar should be counted as a chaukidar. From 100 to 120 houses should ordinarily be considered the normal number to be allotted to each chaukidar, but in areas in which the houses are scattered this number is likely to be excessive. The appropriate number of chaukidars to be entertained can be decided after local enquiry; the main determining factors are the compactness of the village sites, their proximity to one another or otherwise and the prevalence of crime. It is most undesirable that the number of chaukidars employed should be regulated by a calculation of averages and by a comparison with standards only.

33.

The monthly pay of chaukidars shall not ordinarily be less than Rs. 4 in the districts of the Patna, Bhagalpur and Orissa Divisions and less than R. 5.

34.

Under Section 3A of the Act, the District Magistrate, with the sanction of the Commissioner and by an Order, in writing, may delegate his power of appointment of chaukidars and, if unable to exercise them personally he shall ordinarily do so to the Deputy Magistrate in charge of the department in the Sadar Sub-Division and to Sub-Divisional Officers within their respective jurisdictions.

34A.

[pkSdhkj ds in ij fu;qfDr gsrq U;wure rFkk vf/kdre vk;q lhek dze'k% 18 o"kZ ,oa 30 o"kZ gksxh A vuqlwfr tkrh rFkk vuqlwfr tutkrh ds mEehnokjsa ds fy, vf/kdre vk;q lhek 35 o"kZ gksxh A budh fuo'fRr dh vk;q 60 o"kZ gksxh A]

[Added by Notification No. 1573 dated 18.2.1982.]

35.

On the occurrence of a vacancy in the post of chaukidar, the local thana shall at once report the fact to the office of the District Magistrate or Sub-Divisional Officer, as the case may be.

Such vacancies shall also be forthwith reported by the panchayat concerned direct to the Magistrate or the Sub-Divisional Officer, as the case may be, and they shall at the same time forward a nomination of a successor to the post of chaukidar, furnishing the following information:-

- (a)
Name of nominee.
- (b)
Father's name.
- (c)
Caste.
- (d)
Age.
- (e)
Physical condition.
- (f)
Residence.
- (g)
Is the nominee related to the late chaukidar?
- (h)
Is his character good?
- (i)
Are any of his relations bad characters? If so, give details.
- (j)
Can he read and write (more than his name only)?
- (k)
Thumb prints of nominee.

36.

Upon receipt of such a report, or upon intimation of such a vacancy, in any other manner, if no nomination roll has in the meantime been received from the panchayat, they shall be called upon by the District Magistrate or the Sub-Divisional Officer, as the case may be, to nominate, within a reasonable time, a person to be appointed as chaukidar. Such notice to nominate shall be sent direct, and not through the Police. It shall be in the printed Form C.

37.

Upon receipt of the nomination roll by the District Magistrate or the Sub-Divisional Officer, as the case may be it shall be, sent through, the Superintendent of Police or Sub-Divisional Inspector of Police, as the case may be, to the local thana, who shall verify the information under the different headings, and similarly return the roll.

38.

If the nomination by the panchayat proves to be satisfactory, the nominee shall be forthwith appointed.

If the nomination by the panchayat be unfavourably reported upon, a local inquiry shall be made by some Gazetted Officer, and a revised nomination for appointment made.

39.

If no nomination by the panchayat is received by the District Magistrate or the Sub-Divisional Officer, as the case may be, within the time prescribed, the local thana shall be called upon through the Superintendent of Police, or Sub-Divisional Inspector of Police, as the case may be, to submit a nomination in the form prescribed in Rule 35.

40.

The Chaukidari Deputy Magistrate or Sub-divisional Officer, as the case may be, shall issue to the chaukidar appointed a Sanad in Form D. Such Sanad shall be forwarded through the local thana concerned, which will thereby be apprised of the appointment made.

41.

Chaukidars must be of good character and good physique, and if possible, already permanent residents within their beats. Any one appointed a chaukidar, if not already a permanent resident of his beat must take up such permanent residence within a reasonable time after his appointment. Preference shall be given to local candidate and attention should be paid to hereditary claims.

42.

Attempts have been made in the past, with scanty success, to obtain men for the appointment of chaukidars of higher castes than those from which selections are usually made. It was the opinion of the Police Commission that the menial

classes are more amenable to Order and ordinarily maintain better watch and ward than the higher castes. It is unnecessary to make special efforts to obtain recruits from the latter.

43.

A record of chaukidars appointed shall be maintained in the District Magistrate's or Sub-Divisional Officer's office, as the case may be, in the form of Register II-B.

Duties of the Panchayat

A - General.

44.

A copy of the vernacular instructions to panchayats shall be given to each members upon his appointment.

45.

The duties of the panchayat are as follows:-

(a)

To report vacancies among their own membership and to nominate successors to them.

(b)

To report vacancies in the appointment of dafadar, or among the chaukidars of the Union, and to nominate successors to them.

(c)

To appoint one of their members as a collecting member under Section 22 of the Act, and to communicate to the District Magistrate or Sub-Divisional Officer, as the case may be, the name of the person so appointed.

(d)

To exercise a general control over the dafadars and the chaukidars in the Union, with the object of ensuring the regular performance of the duties of watch and ward by them, and the regular reporting of all occurrences and facts of which information is required from the chaukidars by law and rule.

Chaukidars who habitually neglect their duties should be reported to the District Magistrate or Sub-Divisional Officer, as the case may be.

(e)

If aware or informed, of the commission within the Union of any of the following offences, forthwith to cause the same to be reported by the chaukidar to the thana, and on failure of the chaukidar to do so, to themselves report the same, or cause the same to be reported, with the least possible delay-murder, culpable homicide, rape, dacoity robbery, theft, kidnapping mischief by fire, house-breaking, counterfeiting coins, causing grievous hurt, riot, administering stupefying drugs, and all attempts and preparation to commit, and abatement of the said offences.

No member of the panchayat shall personally record any details of the information given, other than the name of the informant and the date of the information. Neither he shall make any inquiry into the facts of the case nor record any statement of the accused.

In the event of the commission of a cognizable offence other than those specified above within the Union, of which any member of the panchayat is aware that no information has been given, he shall communicate the facts to Police.

(f)

To communicate to thana with the least possible delay, information of the existence of disputes likely to lead to riot or serious affray and of an arrest made by chaukidar or private person.

(g)

In the event of any likelihood of a breach of the peace, to proceed to the post, and to endeavour to prevent a disturbance.

(h)

In their capacity of village headmen, under Section 45 of the Code of Criminal Procedure, to forthwith communicate to nearest Magistrate or thana an information obtained concerning any village or village lands of the Union respecting-

(i)

the permanent or temporary residence of any notorious receiver or vendor of stolen property;

(ii)

the resort to any place within, or the passage through, any village of the Union of any person whom they know, or reasonably suspect, to be a thug, robber, escaped convict, or proclaimed offender;

(iii)

the commission of, or intention to commit, any non-bailable offence;

(iv)
the occurrence of any sudden or unnatural death, or of any death under suspicious circumstances.

(i)
To conduct the assessment and collection of the chaukidari tax according to law and rule.

(j)
To assist in maintaining the peace and good administration of the Union, and to communicate freely to the District Magistrate or Sub-Divisional Officer, as the case may be, any information of importance regarding it, or any requirements of the Union in respect of roads, sanitation, water-supply, education, medical or veterinary attendance, or any other such matter.

(k)
To maintain a record of their proceedings in a minute book to be kept in a plain paper register.

46.
Every panchayat shall also be furnished with an information book, which is printed and supplied on indent by the Press and Form; Department, Bengal, in which they shall keep a copy of all information sent either to the District Magistrate or Sub-Divisional Officer, as the case may be, or to the thana, and copies of all information sent to the thana shall be sent at once by, post 'bearing' direct to the District Magistrate or Sub-Divisional Officer, as the case may be.

47.
Panchayats, as representing the villagers, who are the persons most interested, should be encouraged to take an active interest in seeing that their dafadar and chaukidars go their rounds at night regularly. They should see that each chaukidar knows the beat for which he is immediately responsible and that the arrangement of beats is the best possible.

47A.
In areas in which the circle system has been introduced the President of panchayats shall immediately report any damage done to protected monuments within their respective Unions to the Circle Officer for transmission to the District Magistrate.

47B.
The duties of the panchayats with regard to the village boundary marks are as follows:-

(a)
At the time of the demarcation of village points, to receive the reports of the dafadars and to embody them in weekly written reports to the Magistrate on the progress of demarcation.

(b)
To supervise the service by the dafadars of proclamations under the Survey Act, for the demarcation of boundaries.

(c)
To inspect once a year each of the village boundary marks in the Union and to record the date of the inspection in the Union map of marks which is kept by the dafadar.

(d)
To protect the boundary marks from injury and removal.

(e)
To report to the thana all classes of injury and removal of boundary marks which come to their notice, mentioning whether there are reasons for thinking that the damage has been wilful.

B - Assessment

48.
The equitable assessment, and the punctual collection, of the chaukidari tax constitute the most important function of the panchayat. Panchayat should be specially exhorted to assess themselves, their relations and the wealthy zamindars and mahajans at full rates without fear or favour.

49.
Under Section 22 of the Act, the panchayat shall appoint one of their members to be known as the collecting member.

50.
The duties of the collecting member are as follows:-

(a)

To receive and collect the rate and to grant receipts for the same.

(b)

To keep and to be responsible for all papers, accounts and records connected with the assessment and collection of the tax and the administration of the Act, generally.

(c)

On the date fixed for the payment of chaukidars at the thana to cause the amount of their pay to be paid to the chaukidars in the presence of the Officer supervising the parade.

51.

The collecting member, with the permission of the panchayat may retain any sum not exceeding 10 per cent of the amount collected by him to repay the costs of such collection (Section 32 of the Act).

It is to be observed that the 10 per cent is calculated upon the amount collected not upon the demand. It is a common error for the collecting member to imagine that he is entitled to any balance of the 15 per cent additional assessment leviable under Section 13 after payment-or all demands, including the cost of collection. This is not so. The remuneration of the collecting member should be fixed by the panchayat within the limits allowed by law. Any surplus balance to the credit of the village fund should be carried forward in the accounts to the succeeding year.

Out of the 10 per cent allowed to the collecting member, he must pay the cost of collection, e.g. price of receipt forms (vide Rule 81), cost of ink, paper, etc. If the collecting member employs a muharir to assist him with the clerical work of the panchayat, his pay should also be borne from the 10 per cent allowed. Such muharirs are employed solely upon the responsibility of the collecting member. It is unnecessary for the District Magistrate to recognise them.

52.

The District Magistrate shall determine the year current in the Union and shall inform the panchayat.

53.

Two clear months before the first day of the year current in the Union, the panchayat shall meet and shall prepare a budget estimate of their requirements for the ensuing year in the following form:-

Rs.

Pay ofdafadarat Rs.

...

...

Lantern oil allowance at Rs. 0-50 p.

...

...

Pay ofchaukidarsat Rs.

...

...

Annual cost of equipment ofdafadarat Rs.

...

...

Annual cost of uniform ofchaukidarsat Rs.

...

...

Total

...

...

Deduct assessment payable on resumed chakaran lands (if any)

...

...

Balance

...

...

Add 15 per cent of balance above to cover uncollected taxes of defaulters and commission on collections

...

...

Total

...

...

Deduct unexpended surplus of previous year

...

...

Total amount to be raised by taxation during

...

...

Signature of the panchayat

54.

The account required as above during any one year shall be raised by assessment according to the circumstances and property to be protected of any person living in the village, or owning or occupying a building in the village for storing property or collecting rent, in cash or produce, with the following exceptions:-

(a)

All persons who, in the opinion of the panchayat, are too poor to pay half an anna per month shall be altogether exempt from assessment.

(b)

Chaukidars and dafadars resident within their beats should not be assessed, but if they are members of a joint family in which there are other earning members, this exemption will not carry with it the exemption of such other members as may be otherwise liable to assessment.

(c)

Government, as the owner of a house, is exempt from assessment: so, too, is the occupier of a house used for Government purposes in which he actually held, or on the income which he may actually derive from property or business, in the Union.

56.

Care should be taken to see that the tax does not fall entirely upon the holders of land. All private servants, traders, shop keepers and mahajans, workmen, such as dhobies, blacksmiths, carpenters and priests are liable to assessment, unless too poor to pay half an anna a month.

57.

After framing their budget of requirements (vide Rule 53), and two clear months before the first day of the year current in the village, the panchayat shall proceed to assess the tax. The assessment should be made by the panchayat as a body, and not by one member only. It should be made publicly and after notice, so that the villagers may have the opportunity of attending and being heard.

58.

The assessment of the requirements of the Union shall be upon the Union as a whole. Individual tolas and hamlets should not be assessed for the cost of their individual chaukidars. They should bear their fair share of the total cost of the chaukidars in the whole Union.

59.

The panchayat shall first prepare a list of all persons owing or occupying houses or rent cutcherries in the Union, showing their trade, business, etc., and their estimated annual income. All should be shown, whether some are subsequently exempted or not.

60.

The list shall bear one serial number for the whole Union and should deal with the Union in some systematic Order, from one corner to another.

61.

This list shall be in the following form:-

Serial no.

Name of owner or occupier of house.

Trade, business or other description

Estimated annual income

Area of holding

Amount of tax payable quarterly

1

2

3

4

5

6

Rs.p.

Rs.p

It shall be signed by all the members of the panchayat, and shall clearly specify the name of the member to whom the tax shall be paid.

62.

In estimating the amount of annual income in each case the panchayat should consider the total assessable income of the person concerned. His debts and liabilities can be considered in determining the assessment which he is able to pay.

63.

The panchayat should then proceed first to assess the wealthier men to the full limit of their capacity within the legal maximum of Rs. 18 per annum; then the slightly less wealthy to a slightly less extent; and so on in gradation down to the poor, who should be shown in the list as exempted altogether.

64.

For convenience in accounts the annual assessments should, if possible, be graded in multiples of 4 annas, thus eliminating pies from the books.

65.

Once the assessment list has been properly framed as above, it should ordinarily be unnecessary to revise it in toto in subsequent years. Ordinarily, the demand will vary little from year to year, and changes in village circumstances in the course of one year are few.

In a succeeding year, therefore, the assessment list might be prepared in the following form, which deals only with the changes of the year:-

Rs.

Total assessment of the year 1985

...

...

Total requirements of the year 1986

...

...

Difference

...

...

±

*Allowance for balance of the year 1985

...

...

±

Difference to be provided for during 1986

...

...

A ±

Reductions from the assessment list, 1985

...

...

-

Serial no.

Name of owner or occupier of house

Trade business or other description

Estimated annual income

Amount payable annually during 1986

Amount payable annually during 1986

Reason of reduction e.g. death or reduction of circumstances

1

2

3

4

5

6

7

Rs. p.

Rs. p

Rs. p

Total less during 1986 on the assessment list of 1985 = Rs. B.

Additions to the assessment list, 1985.

Serial no.

Name of owner or occupier of house

Trade business or other description

Estimated annual income

Amount payable annually during 1986

Amount payable annually during 1986

Reason of reduction e.g. death or reduction of circumstances

1

2

3

4

5

6

7

Rs. p.

Rs. p

Rs. p

Total addition during 1986 to the assessment list of = Rs. C. 1985.

C-B-A.

Name of collecting member.

Signatures of the members of the Panchayat.

66.

The list prepared either under Rule 59 or 65 shall be published at least 15 days before the new year, and so far as possible, so much of the list as appertains to each village in the Union shall be published conspicuously in that village.

67.

The Panchayat as a body are bound to hear and decide any objection to the assessment list made within one month after the publication of the list. A note shall be kept of such final orders as are passed in the minute book of the

panchayat.

68.

The powers of the District Magistrate in the revision of the assessment list are defined in Sections 20 and 47 of the Act. When a Circle Officer has been appointed, he shall make a thorough examination of the assessment list in each Union, in order to ascertain whether the assessment is equitable, and shall report the result of such examination to the District Magistrate.

69.

The Police shall not be employed in connection with any inquiry into the merits of an assessment list.

70.

After the expiry of the period of one month mentioned in Rule 67, the panchayat shall file a duplicate copy of the assessment list direct in the office of the District Magistrate or Sub-Divisional Officer, as the case may be, together with a certificate stating the date of its publication in the Union.

71.

It is not necessary that two copies of the list should be filed by the panchayat, or that one copy should be returned to them duly approved. The one copy filed is for record in the Magistrate's office.

The object of filing such a copy is as follows:-

(a)

To ensure that such a list is actually prepared by the panchayat.

(b)

To prevent the manipulation of the village copy of the assessment list in the event of objection, etc.

(c)

To enable the District Magistrate to check the general correctness of the total assessment.

(d)

To facilitate reference in the case of an objection filed.

72.

The office of the District Magistrate or Sub-Divisional Officer, as the case may be, shall keep a manuscript list of all Unions, showing the dates upon which copies of the assessment list were filed. The procedure has hitherto been characterised by great unpunctuality on the part of the panchayats, and this list should be utilised in order to check delays.

73.

Upon receipt of such copies of the lists, the office of the District Magistrate or Sub-Divisional Officer, as the case may be, shall see-

(a)

that the list has been properly signed, and that publication has been certified;

(b)

that the budget estimate of requirements (vide Rule 53) has been correctly arrived at;

(c)

that the balance in hand from the previous year (if any) has been allowed for; and

(d)

that the assessment from resumed chakaran lands (if any) has been duly allowed for.

In taking action in remedy of such defects as are discovered, endeavour should be made to avoid the unnecessary harassment of the panchayat.

But if an assessment in excess of the legal requirements has been made, a revised and reduced list shall be insisted upon.

C - Collection

74.

The chaukidari tax is payable quarterly, in advance, and an instalment becomes technically in arrear on the 8th day of each quarter.

The following procedure has been laid down for realisation of chaukidari tax from Railway Administrations (vide Government Order Nos. 847-851 -PL. dated the 1st March, 1924, and Nos. 3029-3031-P1. dated the 24th June, 1926).

Before the end of the Bengali year, panchayats should communicate to the District Magistrate the amount they propose

to assess on a Railway Administration during the following year on account of Railway premises within their Unions. The District Magistrate should scrutinise the bills and, if necessary, exercise his powers under Section 20 of the Village Chaukidari Act, 1870. He should then forward to the Agent of the Railway concerned a consolidated bill on account of chaukidari tax payable for the whole year to the Unions concerned. In the case of bills payable by the Eastern Bengal Railway, they should be sent to the Executive Engineer of the Railway instead of the Agent and, in districts where there is more than one Executive Engineer a copy of the consolidated bill should be sent to each officer to enable him to check and verify such portions of the bill as concern him. When the bill is paid, the amount due to the several Unions should be remitted by money order the money order commission being deducted by the District Magistrate as part of the expenses of collection. If the Agent of the Railway is unable to accept the assessment as finally settled, or approved by the District Magistrate, he may, under Section 135 of the Indian Railway's Act, read with Government of India Resolution no. 434-R-T. dated the 19th August, 1894, appeal to the Divisional Commissioner whose decision in the matter is final.

75.

The legal powers and duties of the panchayat in the matter of compulsory realisation are defined in Sections 36 to 54 of the Act. Panchayats are frequently in ignorance of them, and the provisions of the law should be clearly explained to them at the time of inspection.

76.

A record of all proceedings taken under Section 27, et seq., of the Act shall be made and preserved by the collecting member in the minute book prescribed under Rule 45(k).

Two members of the panchayat shall be present at every sale held under Section 29.

77.

Under Section 27 of the Act, a defaulter whom an order of distraint is issued shall pay a penalty equal to the arrear, and under Section 42 such penalty shall be credited to the Chaukidari Reward Fund. Such penalties shall be credited by collecting members quarterly in the treasury direct under triplicate challans, and it is important to examine the records of such credits when the accounts of a Union are under inspection. There is reason to believe that many such sums at present do not reach the Chaukidari Reward Fund.

Note. - (i) No warrant forms should be issued except by order of the Sub-Divisional Officer upon application by the collecting member panches. Each warrant should be stamped with the Sub-Divisional Officer's seal before issue and should bear his initial over the seal.

(ii)

The collecting member panch in applying for a warrant form must file a list of defaulters stating the amount due. Once he issues a warrant, he must realize the penalty.

(iii)

The warrant must be returned to the Sub-Divisional Officer within the time prescribed by him.

(iv)

The Sub-Divisional Officer must keep a record of and check on all warrants by maintenance of either an order-sheet or register.

(v)

The maintenance of Register III-A by the collecting member panches must be insisted on. The Sub-Divisional Officer on tour should make a point of comparing receipts collected from the villagers with the collecting member panch's counterfoils and Register III-A.

(vi)

The challans showing penalties deposited by the collecting member panches in the treasury must be regularly checked with the returned warrants.

78.

The collecting member shall maintain a register of the orders of distress in Form III-A.

79.

The collecting member shall give printed receipts in Form E.

80.

The forms of Registers III and IV shall be distributed free of charge from the office of the District Magistrate or Sub-divisional Officers, as the case may be.

81.

Printed receipt forms shall be sold by the Nazir at the charge of 8 annas 9 pies per book of 300 forms.

Of this amount, annas three, pies six should be paid out of 10 per cent allowed to the collecting member (Rule 51), and the remainder out of the General Village Fund, as assessed under Section 13 of the Act.

82.

Under Section 16A of the Act, the District Magistrate may appoint a Tahsildar to assist the person collecting the rate on the application of the panchayat, or of his own motion, if in his opinion the collection of the tax is badly carried out.

This is exceptional procedure, and it should be resorted to with reluctance, since Tahsildars are lowly paid officers, and it is difficult to exercise an efficient supervision over their proceedings. It is also unfair to the assesseees, if not due to their fault, since they have to pay the Tahsildars commission in addition to tax and penalty. On the other hand, the expedient of directing the police to assist panchayats, either personally or by orders to the dafadars in the collection of the tax is forbidden.

The practice of employing collectorate persons to serve warrants against assesseees on behalf of the panchayat is also prohibited.

83.

If the original assessments are fairly made, if it is made known in the village that the tax is payable in advance, and if the collecting member exercises reasonable activity in collection and resorts to the powers of distraint given him by law, there is little reason ordinarily why the appointment of Tahsildars should be necessary.

84.

If a panchayat habitually defaults in the payment of its chaukidars the members are presumably unfit for the position, and should be replaced.

Or the District Magistrate or Sub-Divisional Officer, as the case may be, might appoint a Tahsildar in the Union for a period not exceeding one year, thus temporarily superseding the panchayat in the matter of collection.

85.

Tahsildars shall only be employed under the personal orders of the District Magistrate or Sub-divisional Officer, and their number shall be limited to the bare requirements of the district.

86.

They shall give a cash security to be fixed by the District Magistrate for the whole district. They shall also execute a security bond.

87.

A manuscript list of Tahsildars shall be maintained, showing their name, father's name, caste, residence, date of appointment, amount of security, date of furnishing security and date of executing security bond. The list shall be attested by the District Magistrate or Sub-Divisional Officer as the case may be.

88.

A panchayat applying for the appointment of a Tahsildar shall be required to file a written list of the arrears to be collected and an explanation why it is impossible to realise them by the ordinary process of distraint.

89.

An arrear cannot be collected more than one year after it is due (Section 33), and steps should be taken to see that the panchayat is not merely attempting to secure the realisation of time-barred arrears.

90.

Tahsildar, when deputed, shall be given a written parwana, stating the total or arrears and penalty to be collected, and the rate of commission permitted to them (vide Rule 97). A definite day shall be fixed by which they shall be required to return, calculated upon the amount to be collected.

91.

Tahsildars may exercise all the legal powers of collection vested in the panchayat (Section 46A), and they shall pay direct to the collecting member of the panchayat the tax realised by them, and shall take his receipt.

92.

Tahsildar shall be supplied with counterfoil books of printed receipts, and shall be bound to grant receipts of payers for all sums collected, showing separately the amounts paid on account of-

(a)

tax,

(b)

penalty, and

(c)

commission.

93.

Tahsildars shall keep daily accounts of all sums collected by them.

94.

Tahsildars, upon completion of their deputation, shall file a written report of their proceedings, together with their accounts, showing the total sums collected as (a) tax, (b) penalty, and (c) commission, supported by counterfoil receipts and by the receipt of the collecting member of the panchayat for the tax collected and made over to them. The sums realised as penalty shall be paid by the Tahsildar direct into the treasury with challans in triplicate, and one copy of the challan shall be filed with his final report. The Tahsildar may retain the amount of his commission, but shall attach the receipt for the same to his final report.

95.

A Tahsildar has no power to remit a penalty. He must collect it and credit it in the treasury.

96.

The proceedings of all Tahsildars shall be carefully scrutinised by the Magistrate incharge of the department, with special reference to the proportion of the arrear collected and to the credit of penalties realised.

If only a small proportion of the arrear is realised, it may ordinarily be concluded that either the Tahsildar has not shown due activity, or he has collected more than he reports, or there was no real need of his deputation.

97.

Tahsildars shall be remunerated at the rate to be fixed by the District Magistrate personally for the whole district, with the sanction of the Commissioner. (Section 40-B)

98.

The rate of commission shall be fixed is a percentage upon the arrear demand of tax only, and should be such as will give a fair rate of remuneration to the Tahsildar. Each defaulter shall pay his quota of the Tahsildar's commission to the extent of the prescribed percentage, calculated upon the arrear of the tax due from him.

99.

The commission is to be realised in addition to the penalty under Section 27, and the additional assessment of 15 per cent under Section 13; but the collecting member is not entitled to his usual commission of 10 per cent under Section 22 upon any sums collected by a Tahsildar.

The additional assessment of 15 per cent (less deduction for taxes not realised) should be credited to the Village Fund in the ensuing year and the penalties to the Reward Fund.

100.

Register V of the proceedings of Tahsildars shall be maintained.

D - Payments of Dafadars and Chaukidars

101.

[

[Substituted by Notification No. 4017 dated 24.4.1981.]

Chaukidars and Dafadars shall be paid every months upon dates to be fixed for each thana and out-post by the District Magistrate for the whole district.

Such dates shall be communicated by notice yearly to the different panchayats concerned.]

102.

The payment of chaukidars shall be supervised by some Gazetted Officer, or Honorary Magistrate, or Sub Register, or Circle Inspector of Police to be deputed under the Order of the District Magistrate or Sub-Divisional Officer as the case may be.

103.

The Officer so deputed shall be supplied by the Magistrate's Office with a Register in Form VI showing the names of chaukidars to be paid, the rate of pay due to each and the amount of fine (if any) to be deducted from their pay.

104.

All payments must be in cash and must be made in the actual presence of the Officer supervising the proceedings. They must be in full for the quarter's salary. No part payment and no payment in kind shall be accepted, nor shall any

admission of a chaukidar of having received from the panchayat any pay in advance be accepted.

105.

Upon the date fixed all chaukidars shall attend, and the collecting member, of the panchayat shall, personally or by deputy, bring the chaukidars and dafadar's to the thana, as well as his Register IV of disbursements.

106.

In districts in which the system is in force of the service of processes through panchayats (vide Rule 139) dafadars shall be paid a remuneration as may be fixed in each instance under the Orders of Government.

107.

The Office of the Collector or Sub-Divisional Officer, as the case may be, shall prepare the quarterly pay bill of dafadars one week before the end of the quarter, and it shall be cashed and distributed to the different thanas, where it shall be made over to the receipts at the pay parade in the ordinary course.

108.

Upon the dates fixed for the collection of the sums due from panchayat on account of the equipment of chaukidars (vide Rule 209), the Presiding Officer shall supervise such payments as also the compliance by the thana Officer with Rule 211 and Rule 212.

109.

The Presiding Officer shall commence the parade by ascertaining whether all chaukidars shown as unpaid in the preceding quarter have since been paid.

He shall then proceed to the payments of the current quarter.

110.

As each chaukidar is paid, the Presiding Officer shall realise the fine (if any) due from him, and shall certify against his name in the register, the payments to him of the balance of his pay. The amount realised as fine shall be deposited with the thana Officer, for remittance to the treasury, as provided for in Rule 212.

111.

If any chaukidar is not paid, the fact that the payment column opposite his name is blank will denote the arrear.

112.

If any chaukidar is absent, although his pay is forthcoming, the Presiding Officer shall deposit the pay, less fines (if any), with the thana Officer for subsequent disbursement by him, unless the system is in force in the district of despatching the arrear pay of chaukidars to them by Money Order (vide Rule 122) in which case the amount shall be sent to headquarters by the thana Officer and deposited with the Magistrate's cashier for remittance to the chaukidar by Money Order.

113.

Severe notice should be taken of any wilful absence of a chaukidar from the pay parade.

114.

If the name of any chaukidar as given in the register does not represent the existing incumbent, the Presiding Officer shall alter the name as registered, and make payment in accordance with the facts.

If the pay is not forthcoming, the Presiding Officer shall make a note of the fact.

115.

Entry of all payments made shall then and there be made in the acquittance roll kept by the chaukidars in Form F and to Register IV of disbursements kept by the collecting member. The entries shall be attested by the Presiding Officer.

116.

At the close of the parade the Presiding Officer shall distribute all rewards to chaukidars lying undisbursed at the thana. Rewards will ordinarily be distributed on pay parade days by a Gazetted Officer. As however, this procedure may involve delay for the payment of rewards any moneys which may have been received on this account at the Police-Station in the interval between quarterly pay days may be distributed on an ordinary parade day by any Gazetted Officer or Inspector of Police who attends the parade.

117.

Finally, the Presiding Officer shall record a note showing the following particulars:-

Name of thana.

Date of pay parade.

Name of Presiding Officer.

Number of chaukidars on the roll.

Number of chaukidars paid in full.

Number of chaukidars not paid.

Number of chaukidars absent.

Details of chaukidars absent.

Details of mutations in the names of chaukidars as registered. He shall also prepare-

(i)

a treasury challan, in triplicate, for the sum total of the fines realised, upon which shall be endorsed the details of the realisation made;

(ii)

a list of fines not recovered with brief explanations;

(iii)

(in the case of a district in which the arrear pay of chaukidars is despatched by Money Order) a statement of the pay of absentee chaukidars sent to headquarters;

(iv)

details of all rewards distributed;

(v)

details of all chaukidars still unpaid for preceding quarter; and

(vi)

on the dates due for the collection of the cost of equipment (vide Rules 108 and 209) a treasury challan, in triplicate for the sums paid by panchayats.

118.

The notes of the Presiding Officer, together with the Payment Register in original, shall forthwith be transmitted by the thana Officer to the Magistrate's Office. When the Presiding Officer is not the Circle Officer the note under Rule 117 should be prepared in duplicate and the duplicate copy shall be transmitted forthwith to the Circle Officer. The fines and cost of equipment (if any) realised shall at the same time be paid into the treasury by the thana Officer who will send all the money received and the pay of absentee chaukidars (where the system of despatch by money order is in force) shall be paid to the Magistrate's cashier.

119.

After the pay parade at the thana, no pay of any chaukidar shall be received there. If any collecting member appears with any arrear pay on a subsequent date, he shall be directed to the Magistrate.

120.

The Magistrate shall forthwith proceed to-

(a)

issue warrants for the realisation of the pay of any chaukidars shown to be in arrears (Section 46). It is unnecessary as a general procedure to precede such warrants by warning notices;

(b)

(If it is a district in which the system is in force of the despatch of pay of absentees by money order) despatch the pay of absentee chaukidars to the recipients, and in this case the money order commission shall be borne by the chaukidar;

(c)

deal with any miscellaneous cases arising out of reported changes among the chaukidars serving;

(d)

make the necessary entries in the fine registers of the realisation of fines;

(e)

enquire into the reason why chaukidars of the previous-quarter are still unpaid.

121.

In issuing warrants it is to be remembered that, while the collecting member is primarily responsible for the arrears, all members of the panchayat are jointly liable. The names of all members of the panchayat should, therefore, be shown in the warrant.

122.

The peons executing warrants shall either-

(a)

deposit the amount of the arrear pay of the chaukidars in the local thana, bringing in the receipt of the thana Officer for the same, together with the amount of the court-fees payable upon the warrant. In this case the thana Officer shall pay the chaukidar when he next appears at the thana after deduction of any fines due from him. In Order to enable him to deduct such fines it will be necessary for the thana Officer, in districts in which the system is in force, to keep a note of fines unrealised at the pay parade. Such fines realised shall forthwith be despatched to the treasury under triplicate challans;

(b)

If the system of the despatch of the arrear pay to chaukidars by Money order has been sanctioned in the district, bring the amount of the warrant plus the Money Order commission payable (which shall be realised from the panchayat), plus the amount of court fees leviable on the warrant, to headquarters, whence the pay due shall be despatched to the chaukidars concerned, after the deduction of any fines due from them which shall at once be credited to the Chaukidar Reward Fund.

The District Magistrate shall pass Orders as to which system shall obtain in the whole district, and no other system shall be allowed.

123.

Deleted.

124.

All court-fees upon warrants shall be paid by stamps affixed, which shall be punched in the Nazarat.

125.

All attachment warrants shall be dispatched to the Sadar Record-Room from the Sadar Sub-Division in the course of the succeeding month and from outlying sub-divisions in the course of the fourth month succeeding that in which the warrants were executed.

In the record-room the stamps upon such warrants shall be repunched under the ordinary Rules.

126.

A record of all attachment warrants issued shall be kept in the Office of the District Magistrate or Sub-Divisional Officer, as the case may be in the Form Register VII. Every item entered in Register VII shall be initialled by the Sub-Divisional or Chaukidari Officer who shall examine the register every month to make sure that realisation is proceeding without undue delay.

E - Special Duties of Panchayats in Certain Districts.

127.

A copy of instructions to Presidents in vernacular shall be supplied to each President upon his appointment.

128.

In Unions where the President of Panchayat System is introduced, certain special powers, duties and functions which are specified in the following Rules in this sub-section may be delegated to panchayats (in addition to those of which mention has been made above).

129.

The leading members of the panchayat shall be selected by the District Magistrate or Sub-Divisional Officers, as the case may be, and shall be designated, the President as his appointment as such being specified in his Sanad.

The Sanad shall be in the following form:-

Sanad to a President of Panchayat.

To

of village

police-station

1. You are appointed a member and President of the panchayat of the Union named in in thana

2. Under the authority delegated to District Magistrate by the Governor, I invest you with the powers of a Magistrate under Sections 64, 127 and 128 of the Criminal Procedure Code, that is to say, with the powers of arresting persons committing offences in your presence, or ordering unlawful assemblies to disperse and of compelling them to disperse by the use of force.

3. For the purpose of Section 45, sub-section (3) of the Code of Criminal Procedure you are appointed to be a village

headman in all villages comprised in the Union named above.

4. You are hereby vested with the powers of a magistrate to make enquiries in all cases of unnatural deaths when there is no suspicion or suicide or foul play. If there is any reason to suspect that suicide or foul play has been committed you shall set a guard over the corpse and send immediate information to the Police and see that neither the body nor any of the surrounding things are removed or touched until the Police arrive.

5. You are also appointed a visitor of all upper and lower primary schools and all the ponds, public ferries and public sarais in your Union.

6. Your duties as also those of other members of the panchayat and of the dafadars and chaukidars, and muharrihs of the Union, are stated in the Rule sent herewith.

7. You are expected to do your best to ensure the due discharge of all these duties by your own example and by a proper exercise of your personal influence as well as by precept and the powers with which you are invested.

8. You are vested with these powers so long as you are President Panchayat of Union in thana

Given under my hand and seal

District Magistrate.

129A.

The duly appointed President of a panchayat is empowered to delegate his duties other than those which he is empowered to perform under the Criminal Procedure Code by Notification, to any member of the panchayat during his temporary absence up to a limit of one month. If the absence is likely to exceed a month, he should refer the matter to the District Magistrate or Sub-Divisional Officer, as the case may be.

129B.

Presidents should not ordinarily be re-appointed for more than three consecutive terms if another suitable candidate is available who commands public confidence.

130.

The President may or may not be the same person as the collecting member. The intention is to procure for the post of President a man of status and integrity. In some districts such men will not willingly serve upon the panchayat if they are to be concerned directly with the duties appertaining to the collection of the tax. In such cases separate collecting members should be appointed.

131.

Care should be taken to see that the higher position of the President does not entirely overshadow the remaining members of the panchayat. The panchayat should work as a body in all matters appertaining to them as such.

132.

Presidents, if duly qualified may be invested by the District Magistrate with powers under the provisions of Sections [64, 127 and 128]

[Now see Sections 44(1), 129(1) and 129 (2) respectively of Cr. P.C. 1973.]

of the Code of Criminal Procedure, namely of arresting persons committing offences in their presence, of ordering unlawful assemblies to disperse and of compelling them to disperse by the use of civil force.

133.

In exercise of these powers, and upon receipt of information of the assembly of five or more persons likely to cause a disturbance of the public peace, the President shall proceed at once to the place and order them to disperse, and, in case they disobey the order, shall proceed to disperse such assembly with the assistance of the chaukidars or such other persons as he may call to his aid in accordance with [Section 128]

[See Section 129(2) of Cr. P.C. 1973.]

, Code of Criminal Procedure. In case it is necessary for the purpose of dispersing the assembly to arrest any person, such person shall at once be forwarded to the nearest Magistrate empowered to take cognizance of the offence which he may appear to have committed, together with a statement, in writing, of the circumstances of the case, unless the President, under the powers given to him under [Section 64]

[See Section 44(1) of Cr. P.C. 1973.]

Code of Criminal Procedure, accepts bail, in which case the bail bond, together with the report, should at once be forwarded to such Magistrate. In either case information of that occurrence should be given as speedily as possible to the nearest police-station.

134.

Presidents may also be appointed ex-officio as visitors of-

- (a) upper and lower primary schools aided from public funds or under public management, and
 - (b) ponds, public ferries and public sarais.
- and the fact should be specially mentioned in the Sanad to be given to them.

135.

District Magistrate may invest the President or selected members of a panchayat with powers to enquire into the circumstances of unnatural deaths in which there is no suspicion of suicide or foul play in all cases of unnatural death the President or any other member so empowered shall set a guard over the body, and in cases in which there is no suspicion of suicide or foul play, the President or the member may enquire into the circumstances of the death and give permission to the relatives to dispose of the body. The result of such enquiry shall be forthwith reported to the police-station, the report being signed by two relatives of the deceased in token of its correctness.

The President or any member shall make no enquiry in any case in which there is suspicion of suicide or foul play.

136.

All informations and reports recorded by the President or other members empowered shall be written in the information book referred to in Rule 46, and copies of the same shall be sent forthwith direct to the District Magistrate or Sub-Divisional Officer, as the case may be, by post "bearing" or by any other means calculated to ensure its speedy delivery, subject to any modification of the Rule regarding information which may be required.

137.

The President shall hold fortnightly parades of the dafadars and of all chaukidars in the Union on such dates as may be fixed by the District Magistrate, and shall question them as to the occurrences (if any) in the Union during the fortnight. He shall also question the dafadar as to the conduct of the chaukidars during the fortnight.

He shall forthwith communicate to the thana (with a copy to the Magistrate or Sub-Divisional Officer, as the case may be) any information received under, any of the heads mentioned in Rule 45.

If, for any reason, the President is unable to attend the parade, he may depute some other member of the panchayat to supervise it.

If he has been appointed by the District Magistrate as the local Registrar of Births and Deaths in the Union, he shall receive from the chaukidars of the Union, their hathchithas showing births and deaths occurring within their respective beats, for the purpose of making necessary entries in the registers of births and deaths.

138.

A note shall be kept in the minute book of all chaukidars absent from parade, together with a note as to the reason of their absence, and men who are frequently absent for insufficient reason shall be reported to the District Magistrate or Sub-Divisional Officer, as the case may be, for punishment. When reporting any absence for which there is no valid excuse, the President should state whether, in his opinion, the absentee should be fined or warned, having regard to the general conduct of the absentee and to the number of times he has previously been absent. Intimation should be sent to Presidents of panchayats of the orders passed on their reports.

139.

The President shall receive all processes addressed to him and shall make them over to the dafadar or to one of the chaukidars for service. After service he shall see that affidavit of service is correctly made and shall return the process to the court from which it was issued by post "bearing" or by any other means calculated to ensure its speedy delivery. The President should maintain such simple notes of the receipt and disposal of processes as will enable him to trace them. He should not be required to keep up elaborate registers, such as Register 43 of 23 processes.

140.

Presidents should be encouraged to use their influence in settling petty disputes between parties who voluntarily appeal to them for arbitration. They have no power to levy any fee or fine in such a case.

140A.

The Presidents shall compile forecasts of crops by personal inspections of villages in their Unions in accordance with such instructions as may from time to time be issued by the Director of Agriculture, Bengal, with the approval of Government, and send them direct to the Collector or Sub-Divisional Officer.

Duties of The Dafadar

141.

A copy of instructions to dafadars in vernacular shall be supplied to each dafadar upon his appointment.

142.

The dafadar shall not ordinarily be employed outside his Union, and he shall be treated with consideration as an important link between the Police and chaukidars. He shall, to the best of his ability, assist the police in the execution of their duty, and shall carry out all lawful order issued by the Police in the course of such duties.

143.

The dafadar shall keep a bound note-book, showing the names of the mauzas and inhabited villages in the Union, the names of the chaukidars, the names of all criminals over whom he is ordered by the Superintendent of Police to exercise surveillance, the names of absconders, the names of fine defaulters and the amount of the fines outstanding, and the names of holders of licenses for guns and swords.

The thana Police shall be responsible that such entries are correct and up-to date.

144.

The dafadar shall periodically patrol the villages in the Union, both by night and day, and shall be held responsible that the chaukidars in the Union which he may reasonably be expected to have checked.

145.

There should be a real responsibility of the dafadar, and he should be expected to explain any negligence of duty on the part of the chaukidars in the Union which he may reasonably be expected to have checked.

146.

The dafadar shall pay surprise visits to at least two of the chaukidar's beats in the Union on at least four nights during the week, and shall see that the chaukidars are alert and performing their duties.

147.

He shall be expected generally to be acquainted with all the acts concerning the Union in which chaukidars are expected to be posted.

148.

The dafadar should be held especially responsible-

(a)

for the reporting of the movements of B and C class bad characters, strangers and wandering gangs;

(b)

for timely information of the likelihood of a breach of the peace;

(c)

for the arrest of absconders and for information regarding them; and

(d)

for the realisation of outstanding fines.

148A.

District Magistrates may, at their discretion, require literate dafadars to keep diaries. The diary should be in the following form

Date

Villages visited.

Remarks-Movement of bad characters.

The dafadar should submit his diary to the Sub-inspector whenever he visits the thana, or whenever the Sub-Inspector may call for it. Bound diary books should be issued for the purpose with numbered pages.

149.

Duties of Dafadars.

- He shall attend the thana parades of chaukidars subordinate to him and see that all the chaukidars attend in proper uniform and that they give all the information required of them. He shall acquaint himself with any unavoidable reasons for which a chaukidar may be unable to attend, and should be able to explain to the officer taking the parade. In the case of the unavoidable absence of a chaukidar, he should see that a substitute is sent.

He shall report to the panchayat and at the thana parades the misconduct of any of the chaukidars subordinate to him.

150.

If any chaukidar is unable by sickness or other unavoidable reason to perform his round duties, the dafadar shall inform

the panchayat, and shall see that a substitute is appointed.

151.

In districts in which the system of fortnightly parades of chaukidars before the President is in force, the dafadar shall also attend and Rule 149 shall be equally applicable to such parades.

152.

In such districts the dafadar shall, as ordered, serve, or deliver to the chaukidars for service, all such processes as may be made over by the President to him.

152A.

The duties of dafadars with regard to village boundary marks are as follows:-

(a)

On receipt of orders from the Magistrate, to arrange for the demarcation by chaukidars of the true junctions of villages within their Unions, and to make weekly verbal reports of the progress of demarcation to the panchayat, who will submit reports to the Magistrate.

(b)

On receipt of order from the Magistrate, to serve under the supervision of the panchayat general proclamations under the Survey Act, for the demarcation of boundaries.

(c)

To report immediately at the thana, information received from chaukidars or otherwise of the disappearance or damage of boundary marks.

(d)

On the completion of the settlement of a district to be present when the Collectorate Officer visits the Unions, and to take over from him the boundary marks of their Unions as recorded in the Union map of marks, which will then be entrusted to them.

(e)

Thereafter, to certify at the thana at each pay parade day either that no boundary marks in their charge are missing or that the missing or damaged marks have been duly reported at the thana.

Duties of Chaukidars

153.

A copy of the vernacular instructions to chaukidars shall be supplied to each chaukidar upon his appointment.

154.

The legal duties of the chaukidar are defined in Section 39 of the Act, and his proper procedure on arresting a person in Section 40.

155.

The chaukidar shall patrol his beat at night, and shall be present in his beat each night.

156.

The chaukidar shall attend the muster parades at the thana weekly and shall there furnish the information required of him. The Rules regarding the holding of thana muster parades are contained in the [Bengal Police Code]

[See now, Bihar Police Manual, Volume I (Rule 110).]

. The chaukidar shall give prompt information at the thana of any outbreak of small-pox, cholera or plague or the occurrence of an unusual amount of illness very much above the normal for the time of the year and, if so required by the Officer-in-Charge of the thana to the nearest Health Inspector or Dispensary Doctor employed either by the Provincial Governments or the District Board.

157.

The chaukidars of panchayati Unions in which the system of fortnightly parades before the Presidents of panchayats is in force shall attend the thana parades once a month only, half the number of chaukidars of each Union parading on one day and the other half a fortnight later, the parades being fixed on days and weeks other than those fixed for parades before the President of panchayats. In the month in which the chaukidars are paid they shall all attend on the day fixed for the pay parade. Chaukidars who are unable, on account of illness, to attend shall send all information which they would report, if present, through the dafadar or a neighbouring chaukidar. This does not affect the liability of the chaukidars to attend at the thana on other occasions to fulfil any other statutory obligation.

158.

The following are the Rules for holding chaukidari parades at thanas in districts where the President system is not in force, or where the President does not hold fortnightly parades :-

(i)

The chaukidars within the jurisdiction of each station shall be separated into two classes, viz, (a) those belonging to village within a radius of 10 miles, and (b) those belonging to villages outside such a radius. The former shall attend once a week; the latter shall attend once a fortnight.

(ii)

These two classes shall be further sub-divided into groups of 20 or any less number of chaukidars. Each chaukidar shall have his groups number and his individual number in that group. The odd and even numbers of each group shall attend on separate days in each week's (or in each alternate week's in the case of groups parding once a fortnight) to be fixed by the Superintendent of Police with reference to local conditions. Such as hat-days, etc. Where there are two or more chaukidars in a village, they should attend alternately, so that there may always be one chaukidar present in the village. On the day fixed for pay parades all the chaukidars shall attend at the thana.

The above provisions of the Rule do not affect the liability of chaukidars to attend the thana on other occasions to fulfil any other statutory obligation.

At their parades, chaukidars shall be attended by their dafadars, provided that a dafadar shall not be required to attend a thana parade more than once a week.

The chaukidari parade at the thana shall be held at such an hours as to admit of chaukidars returning to their village by sunset, if possible and, in order to ensure this, chaukidars shall be compelled to be punctual. It is equally essential that the Police officers shall not detain chaukidars unnecessarily.

159.

In such districts the chaukidars shall serve all processes made over to them by the President or by the dafadar acting under his order. '

160.

Deleted.

161.

Chaukidars shall not be taken away from their beats for miscellaneous other work, except in cases of special urgency or when they are required to guard or escort prisoners.

Their employment by the Police or by the panchayat as their private servant or in a menial capacity is strictly forbidden.

162.

The chaukidar shall assist the collecting member in the collection of the chaukidari fax, and shall obey any lawful orders given him by the panchayat.

162A.

One chaukidar should be ordered to attend the office of the President panchayat every day, according to a roster announced at the President's parade. It will be the duty of this chaukidar to attend to such work as the President panchayat may lawfully ask him to do.

163.

Chaukidars to the best of their ability, shall assist the Police in the execution of their duty, and shall carry out all lawful orders issued by the Police in the course of such duties.

163A.

Chaukidars shall immediately report at the thana any damage to protected monuments situate within their Unions. In areas in which the circle system has been introduced, the chaukidars instead of submitting their reports to the thana, shall submit them to their respective President panchayats.

Discipline

A - Punishments

164.

Under Section 38 of the Act XLV of 1860) every chaukidar who may be guilty of any wilful misconduct in his office or neglect of his duty, such misconduct or neglect not being an offence within the meaning of the Indian Penal Code and not being of so grave a character as, in the opinion of the District Magistrate, to require his dismissal, shall be liable to a fine which shall not exceed the amount of one month's salary.

165.

The permissible forms of punishment are as follows:-

Dismissal.

Fine.

Deprivation of good conduct badges or stripes.

Censure or warning.

Suspension should not be awarded as a substantive punishment, owing to the confusion it creates in the duties of watch and ward. When the conduct of a chaukidar is such as to raise a prima facie likelihood of his ultimate dismissal, he may be suspended pending inquiry, but a term of such suspension should always be stated and arrangements for a substitute should be made.

166.

The more common offences committed by chaukidars are the following:-

(i)

Absence from thana parades (or President's parades where in force);

(ii)

Absence from round duty;

(iii)

Failure or delay in giving information;

(iv)

Failure to arrest absconders;

(v)

Miscellaneous misconduct, e.g. drunkenness, association with bad characters, disobedience to orders or conviction of a definite criminal offence.

Offences of the two classes last mentioned must be dealt with on their merits in each case, but in order to enforce some system in the punishment of chaukidars throughout a district, the District Magistrate, in consultation with the Superintendent of police, shall prescribe a scale of punishments, to be treated as a standard, although for sufficient reason discretion may be exercised.

Such a scale current in the district of Bakarganj is reproduced for guidance

Scale of chaukidar's punishments

Serial no.

Offence

Scale of punishment during the year.

1st time

2nd time

3rd time

4th time

5th time

6th time

7th time

Absence from parade without reasonable excuse

Fine Warning.

Fine 8 as.

Fine 12

Fine Re. 1

Fine Rs. 2.

Fine Rs. 4

Dismissal.

Absence from mohalla at night.

Ditto

8 as.

Re.1

Rs. 2

Rs. 4

Dismissal

Delay of more than 24 hours in reporting murder, dacoity or riot with grievous hurt or resulting in death, of which he is aware, or must have been aware, if he had neglected his duty-dismissal.

Delay of less than 24 hours in reporting any of the above-four annas per every hour of delay.

Delay of more than 48 hours in reporting other occurrences which he is bound by law or Rule to report-

For first instance in any one year-Fine Rs. 5.

For 2nd instance in any one year-Dismisal.

If delay be less than 48 hours-One anna fine per hour.

Not reporting the news of births and deaths-Fine of Re. 1 for not reporting each time.

167.

Under Section 3A, of the Act, the District Magistrate, with the previous sanction of the Commissioner, and by an order in writing, may delegate his powers of punishment of chaukidars, and he shall ordinarily so delegate them concurrently to the Superintendent of Police throughout the district and to Sub-Divisional Officers within their respective sub-divisions.

168.

An appeal from any order imposing a punishment passed by any officer other than the District Magistrate shall lie to the District Magistrate if lodged within 30 days from the date on which such order was communicated to the panchayat or chaukidar concerned. Subject to the provision of Section 64 of the Act, no appeal shall lie from any such order passed by the District Magistrate.

169.

Under Section 42 of the Act, all fines and penalties levied under the Act, shall be credited to the District Chaukidari Reward Fund.

170.

The District Chaukidari Reward Fund constituted under Section 42 of the Act, shall be treated in the accounts as an incorporated local fund and the receipt and charges dealt with in accordance with the instructions contained in Chapter 16 of the Civil Account Code.

171.

The assests of the fund will ordinarily consist of -

(a)

finances and penalties levied under Sections 8,27 and 38 of the Act, and

(b)

such sums as may be contributed to it by Government.

172.

The Magistrate of the district shall be the administrator of the fund-

(i)

All bills against the fund shall be signed by him, the charges being regulated by the ordinary budget Rules.

(ii)

He shall also estimate the receipts and charges of the fund in the usual way and submit such estimates to the Commissioner of the Division for sanction.

(iii)

The estimates shall include any contribution required from provincial revenues, but such contribution cannot be drawn and credited to the fund except with the authority of the Accountant General and under the special orders of Government in each case.

173.

All reports against chaukidars received from the Police shall be in Form G. The thana officer after filling in the report and the counterfoil, shall send the report to the District Superintendent of Police. No chaukidar shall be dismissed without being given an opportunity of representing his case before the Sub-Divisional Officer or District Superintendent of Police, as the case may be.

174.

When the order of punishment is passed by the District Superintendent of Police, he shall record the same in a separate order book kept in different parts for different subdivisions and shall return the Form G to the thana concerned through

the District Magistrate for the Sadar Sub-Division, or through the Sub-Divisional Officer in the case of outlying sub-divisions. The thana officer on its receipt shall paste it on to the counterfoil.

Note 1. - For the procedure for the realisation of chaukidari fines in subdivisions entirely under the village Self-Government Act, see Rule 57 of the Union Board Manual, Volume II.

Note 2. - For the procedure for the realisation of chaukidari fines in subdivisions partly or entirely under the Chaukidari Act, in districts in any part of which a Union board has been constituted, see Rule 64 of the Union Board Manual, Volume II.

175.

The offices of the District Magistrate and Sub-Divisional Officers shall maintain the following registers in connection with the realisation of fines in the Sadar and outlying sub-divisions, respectively. -

Register VIII of fines and penalties credited to the Chaukidari Reward Fund, and Register IX of challans and fines credited.

176.

Upon receipt of Form G, containing an order of punishment passed by the Superintendent of Police, the office of the District Magistrate or Sub-Divisional Officer, as the case may be, shall-

(1)

note the punishment against the chaukidar concerned in Register II-B;

(2)

if the order is one of suspension or dismissal, make immediate arrangements for the appointment of substitute or a successor;

(3)

if the order is one of fine, note the same in Register VIII; and

(4)

return Form G to the thana concerned, without delay, for communication to the chaukidar who has been punished.

Similar action should be taken in the case of punishment inflicted by the District Magistrate or Sub-Divisional Officer direct.

All entries in Registers II-B and VIII shall be attested by the Chaukidari Deputy Magistrate or Sub-Divisional Officer, as the case may be.

177.

The order books of punishment inflicted by the Superintendent of Police shall be sent, in original, at the close of each quarter to the office of the District Magistrate or the Sub-Divisional Officer, as the case may be, for comparison with the entries in Registers II-B and VIII. Such comparisons shall be made promptly, and the order books returned to the Superintendent of Police with a certificate that this has been done.

178.

The office of the District Magistrate or Sub-Divisional Officer, as the case may be, shall be responsible for the punctual realisation of fines imposed upon chaukidars within the Sadar and outlying sub-divisions, respectively.

179.

After the 20th day of the third month of the quarter, both the offices of the District Magistrate and Sub-Divisional Officer shall enter in Register VI (payment of chaukidars) the fines due to be recovered at the succeeding pay day since the 20th day of the preceding quarter (vide Rule 103).

180.

Fines upon chaukidars shall be realised at the thana quarterly pay days, and intimation of such realisation shall be given to the office of the District Magistrate or Sub-Divisional Officer, as the case may be, by the receipt of one copy of the triplicate challans with which such fines are credited into the treasury (vide Rule 117).

181.

Upon receipt of this challan its number, date and total shall be recorded in Register IX, and attested by the Deputy Magistrate in charge or Sub-Divisional Officer, as the case may be. Entries of the detailed fines realised shall similarly be made in Register VIII and similarly attested.

182.

The total of fines imposed shall be abstracted from Register VIII quarterly, up to the 10th day of the third month of the quarter. Similarly, the total of fines credited shall be abstracted quarterly from Register IX, and, allowing for the fines

outstanding from previous quarters, a balance shall be struck in Register VIII, showing the total of unrealised fines outstanding.

This balance shall be personally seen by the District Magistrate or Sub-Divisional Officer, as the case may be, and, where the outstanding balance is unduly large, the necessary action shall be taken.

183.

All fines imposed under Section 8 of the Act, shall be deposited in the treasury to the credit of the Chaukidari Reward Fund by triplicate challans, one copy of which shall be forwarded to the office of the Magistrate or Sub-Divisional Officer, as the case may be. From this copy of the challan the fine shall be entered in Registers VIII and IX and duly attested.

184.

Penalties imposed under Section 27 should reach the treasury in two ways-

(a)

either from members of the panchayat (vide Rule 77); or

(b)

from Tahsildars (vide Rule 94).

In either case they shall be credited to the Chaukidari Reward Fund under triplicate challans, one copy of which shall be forwarded to the office of the District Magistrate or Sub-Divisional Officer, as the case may be.

From this copy of the challan the penalty be entered in Registers VIII and X and duly attested.

B - Rewards

185.

Great importance is attached to the rewarding of chaukidars. It is the only stimulus of these lowly-paid officers to good work, and when they do good work they should be rewarded freely and adequately in substantial sums.

Rewards should ordinarily be given for:-

(a)

information leading to the prevention or detection of crime;

(b)

the seizure or recovery of stolen property;

(c)

the arrest of offenders or absconders;

(d)

personal courage shown in the arrest of dacoits, thieves or other offenders;

(e)

meritorious conduct, not included in the above clauses which the District Magistrate, with the concurrence of the Commissioner, considers deserving of reward;

(f)

watching the whereabouts of bad characters in their jurisdiction and giving useful information about their movements to the Police;

(g)

when chaukidars are called away from their regular beats on special duties, such as watching the route of the Viceroy or the Governor; they should get an allowance of six annas per day (even for a part of a day spent on journey or on duty) so long as they are employed, on such special duties. The charge should be treated as an item of regular contingencies and should be met from the lump allotment made in the Police budget, under the orders of the Inspector-General of Police;

(h)

giving prompt information at the thana of any outbreak of small-pox, cholera, plague, or the occurrence of an unusual amount of illness very much above the normal for the time of year.

186.

Chaukidars shall not be rewarded merely for regular attendance at muster parades. Attendance regularly at such parades is a part of the prescribed duties of a chaukidar, and its performance calls for no reward.

187.

In order to facilitate the prompt payment of rewards a permanent advance of Rs. 100 shall be made over to the District Superintendent of Police from which he may make a subsidiary advance of Rs. 15 to each Circle Inspector.

188.

Rewards shall consist of-

(i)

Sums awarded in cash.

Such rewards should be given in lump sums. Orders permitting continuing payments, e.g. of Re. 1 per mensem out of the Reward Fund, are open to objection.

(ii)

A good conduct chevron of red Sabi (to be worn upon the left forearm).

Such a stripe shall be awarded after three money rewards for good service have been earned.

For each year such a stripe is kept with a clear character sheet, the holder shall be entitled to as cash reward which should range from Rs. 12 to Rs. 24 according to circumstances.

No more than three such chevrons shall be awarded to a chaukidar, but the cash reward, which may be earned by such stripes, shall in no case be Rs. 24 in the case of a chaukidar and Rs. 24 in the case of dafadar, even if more than one stripe, is worn.

(iii)

An oblong silver badge, to be granted in special cases to a chaukidar who at his personal risk, or with considerable effort-

(a)

arrests a murderer, dacoit, robber, professional thief or incendiary or a person who has committed culpable homicide or caused grievous hurt;

(b)

prevents, or intervenes with the purpose of preventing, the commission of murder, dacoity, or riot.

The grant of such a badge shall entitle the holder to a cash reward of Rs. 18 for each year for which it is held with a clear sheet. The grant of medals to chaukidars is forbidden.

(iv)

Gratuities on retirement.

189.

In order to enforce some system in the grant of cash rewards to chaukidars throughout a district, the District Magistrate in consultation with the Superintendent of Police, and in consideration of the sums likely to be available from the Chaukidari Reward Fund shall prescribe a scale of cash rewards to be treated as standard, although for sufficient reason discretion may be exercised. Such a scale current in the district of Bakarganj is reproduced for guidance.

Scale of Rewards to Chaukidar

Serial no.

Crime or occasion of reward.

Arrest red-handed or prevention

Furnishing clue.

Arrest of absconder.

Remarks.

1

2

3

4

5

6

Rs.

Rs.

Rs.

1

Theft

5

3

4

If more than one chaukidar participates, the amount will ordinarily be divided.

2

Burglary

15

5

10

3

Robbery

30

10

15

This scale liable to be modified, in whole or in part without notice.

4

Dacoit

30

15

20

5

Murder

50

10

20

6

Gun-shot murder or attempt

100

15

20

7

Bad livelihood

15

5

10

8

Arms Act

50

15

20

9

Grievous hurt

15

5

10

10

Mischief by fire

30

10

15

11

Riot	
15	
5	
10	
12	
Counterfeiting coins	
50	
15	
20	
13	
Breach of the peace.	
5	
1	
2	
14	
Information leading to institution of proceedings, Section 145, Criminal Procedure Code.	
...	
...	
5	
15	
Other work in connection with investigation.	
...	
...	
Rs. 8Rs. 5	
16	
Gratuity on retirement.	
Eight annas for each completed Year of service, if relative appointed to succeed, and Re. 1 if outsider appointed.	
17	
Detection of unreported births and deaths at the rate of Re.	
1.	
...	
...	
190.	
Rewards of over Rs. 50 require the sanction of the Commissioner of the Division.	
191.	
Under Section 3A of the Act, the District Magistrate with the previous sanction of the Commissioner, and by an Order in writing may delegate his powers of rewarding chaukidars, and he shall ordinarily delegate them concurrently to the Superintendent of Police throughout the district and to Sub-Divisional Officers within their respective Sub-Divisions.	
192.	
Trying Magistrates should draw the attention of the Superintendent of Police to any instances of good work on the part of chaukidars coming to their notice in cases disposed of by them.	
193.	
All recommendations for the grant of rewards shall be in Form H. The Superintendent of Police may empower selected Inspectors to grant and pay rewards not exceeding Rs. 2 in anticipation of his sanction. The fact that this payment has been made in anticipation of sanction should be noted in column 5 of Form H.	
194.	
All Orders for the grant of rewards passed by the District Magistrate or Sub-Divisional Officer, as the case may be, whether in Form H or not, shall be communicated to the thana concerned through the Superintendent of Police.	

195.

The Superintendent of Police shall be responsible for the prompt disbursement of rewards.

196.

In connection with the grant of rewards the following registers shall be kept:-

Register X of rewards paid.

Register XI of badges and chevrons distributed.

Register XII of recoupment of the permanent advance on account of rewards.

These registers shall be kept in the Office of the District Superintendent of Police.

197.

Immediately a reward is ordered, the amount shall be disbursed from the permanent advance of the District Superintendent of Police and despatched to the thana, along with the payment voucher and the report (Form H). The payment voucher shall be signed by the thana Officer in token of its receipt and returned to the District Superintendent of Police who will annex it to the recoupment bill as a voucher. The report shall be posted by the thana Officer to the counterfoil. Entry of the reward and date of such despatch shall also be made in Register X and XI, as the case may be and attested by the District Superintendent of Police.

198.

When a reward is distributed at a thana, intimation of the date shall be sent to the Office of the Superintendent of Police and noted in Register X.

199.

All rewards must be distributed publicly at Police-Station on parade days. Rewards not exceeding Rs. 5 shall be distributed by the Officer In-charge of the Police-Station concerned. Rewards exceeding Rs. 5 shall be distributed by a Gazetted Officer, Honorary Magistrate or Inspector of Police, provided that if this caused delay of more than a month in payment, the reward may be distributed by the Officer In-charge of the Police-Station who shall send intimation of one date of distribution of rewards by him to the Office of the Superintendent of Police as required by Rule 198.

200.

If a chaukidar dies before receipt of a reward, the sum may be paid to his legal heirs.

201.

Badges shall be obtained from Messrs K.N. De and Company. Radha Bazar, Calcutta.

If the demand for badges is frequent, it would be well to keep a small supply of them in hand.

202.

Bills for cash reward and badges shall be prepared and drawn separately.

The price of badges should be remitted to the vendor by remittance transfer receipt.

203.

The District Superintendent of Police shall recoup his permanent advance at the necessary intervals, upon bills countersigned by the District Magistrate to which the payment vouchers of Form H are attached as vouchers.

Upon receipt of such a bill for countersignature the Magistrate's Office shall note the rewards given, against the names of the chaukidars concerned, in Register II.

204.

(i)

Within fifteen days of the expiry of each quarter of a financial year, the Office of the District Magistrate (for the Sadar Sub-Division), and the Offices of the

Sub-Divisional Officers (for their respective jurisdiction), shall prepare the quarterly statement of receipts (Form J), from Register IX of challans credited. The Office of the District Superintendent of Police shall prepare the quarterly statement of disbursement (Form J) and shall supply it to the Office of the District Magistrate.

(ii)

Each District Officer shall prepare an annual pro forma account in the form given below of the District Chaukidari Reward Fund for the whole district from the statements in Form J prepared under the foregoing clause:-

Year

Opening balance.

Receipt (a).

Expenditure (b).

Balance at the end of the year.

1
2
3
4
5

(a)

Credited to provincial revenues under the head "XXIII-Police".

(b)

Expenditure recorded under "P-Deposits and Advances-Deposits not bearing interest-Other Deposit Accounts-Civil Deposits- Deposits on account of Police Funds".

A general agreement between receipts and expenditure should be maintained in all districts and in particular the disbursing Officer should watch that the expenditure does not exceed the receipts.

(iii)

The balance in column 5 of the pro forma account mentioned in clause (ii) must not be taken to be available for expenditure. The expenditure will continue to be regulated by the memorandum below.

(iv)

An account of receipts of the District Chaukidari Reward Fund should be kept separately by the Treasury Officer in the register of receipts of the Police Department.

(v)

The Treasury Officer will supply to the District Officer quarterly, an advice list showing the opening balance to daily transactions-both receipts and expenditure-and the closing balance in respect of the District Chaukidari Reward Fund.

(vi)

The quarterly statement in Form J shall be audited and compared with the treasury accounts by an Officer to be nominated for the purpose by the District. Officer to whom the result of such audit shall be duly certified.

(vii)

Each District Officer shall submit his pro forma account to the controlling Officer (Chief Secretary to Government, Political Department) as soon as the financial year is over.

(viii)

The controlling Officer shall prepare a consolidated pro forma account in respect of the fund and forward the same in duplicate to the Accountant-General for verification and to the Finance Department.

(ix)

A copy of the said account as verified by the Accountant-General should be submitted by the controlling Officer to Government in Finance Department and to the Accountant-General along with his revised and budget estimates. The actual of the preceding years and the proposed estimates should be shown year by year.

Equipment of Chaukidars and Dafadars

205.

The work of indenting for and keeping accounts of uniforms and equipments of chaukidars and dafadars shall be done in Sub-Divisional Offices except in the Sadar Sub-Divisions of districts which have not separate Sadar Sub-Divisional Officers, where the work shall be done in the Office of the District Magistrate.

206.

A dafadahs uniform shall consist of the following Particles:-

Period for which to last.

One Khaki Jumper

...

...

...

Two years.

One Khaki haversack

...

...

...

Ditto.

One Red Pagri

...

...

...

Ditto.

One Red cross belt

...

...

...

Ditto.

One Leather belt

...

...

...

Four years.

One Brass badge

...

...

...

Ten years.

One Dark lantern

...

...

...

Three years.

206A.

A chaukidar's uniform shall consist of the following articles:-

Period for which to last.

One Blue jumper

...

...

...

Two years.

One Blue Pagri

...

...

...

Ditto.

One Red cross belt

...

...

...

Ditto.

One Blue haversack

...

...

...

Ditto.

One Leather belt

...

...

...

Four years.

One Brass badge

...

...

...

Ten years.

Note. - In addition to the articles mentioned in this Rule, the chaukidars employed on patrol work on the Nepal border, in the Champaran district, will get a blanket each ever two years, the cost being realised by additional assessment in the Unions concerned (vide Rule 208).

207.

The annual cost of uniforms for each dafadar and chaukidar respectively, should be worked out on the basis of the list supplied from time to time, to all indenting Officers by the Inspector-General of Prisons, for the following articles:-

Half the cost of-

one jumper,

one haversack, one pagri, and

one cross belt, one-fourth of the cost of one belt,

one-fourth of the cost of one brass badge, and

one-third of the cost of one dark lantern.

For each chaukidar half the cost of-

one Jumper,

one pagri,

one cross belt; and

one haversack,

one-fourth of the cost of one leather belt, and

one-tenth of the cost of one badge.

Dark lanterns are obtained from the firm which in the opinion of the District Magistrate provides the best lanterns at the lowest price. The railway freight and other incidental charges for these lanterns will be met from the Uniform Fund.

Note. - Where there is a sufficient surplus balance to the credit of the Chaukidari Uniform Fund, Chaukidars may be supplied with a blanket or a jersey and dafadars with both a blanket and a jersey costing not more than Rs. 4-8-10 each. No additional assessment should be made in Order to provide this additional equipment.

208.

The panchayat for each Union shall assess an amount equal to the annual cost of the uniform of each dafadar, plus railway freight and other incidental charges for the dark lantern, and for that of each chaukidar.

209.

The collecting members of each Union shall pay this amount in quarterly instalments for each dafadar and chaukidar, to the Sub-Inspector In-charge of the thana concerned, in the presence of the Officer deputed to supervise the payment of the chaukidar's salaries. The amount must be recovered in full in respect of every dafadar and chaukidar without exception.

210.

All receipt on this account shall be entered in the thana or outpost cash accounts, and the Sub-Inspector shall grant receipt for the same to the collecting members concerned, in the prescribed form.

211.

The Sub-Inspector in-charge of each thana and outpost shall prepare, a fortnight before the date fixed for the payment of the first quarter's pay of chaukidars for each year, a statement in duplicate in the form of Register XIII. One copy shall be prepared in a bound volume, and the other on loose sheets.

Columns 1 to 6 should be filled in at once; columns 7 to 18 on the dates of payment; and the initials of the Presiding Officer should be taken in columns 9,12, 15 and 18. The remaining columns of this register should be filled in at the time of the distribution of the uniform as laid down in Rule 220.

212.

The cost of uniforms as realised on each pay day shall be remitted without delay to the treasury, with challans in triplicate, together with the duplicate copy of the statement mentioned in Rule 211 and along with the other moneys, e.g., fines etc., collected at the parade (vide Rule 117).

213.

On receipt of one copy of the challan and the duplicate copy of the statement mentioned in Rule 211, the office of the District Magistrate or Sub-Divisional Officer, as the case may be, shall write up an account in Register No. XIV showing the quarterly receipts on account of uniforms, thana by thana, as also the total for the sub-division. Three or four lines shall be allowed to each thana in case the quarterly payments of all Unions are not made on the same date.

214.

As soon as the quarterly accounts for each sub-division in the form referred to in Rule 213 are prepared, an abstract from Register XIV, showing by thanas the quarterly totals shall be submitted to the District Magistrate's Office, where an account for each sub-division shall be kept. The accounts relating to each sub-division should be kept on a separate page of the register for each year.

215.

The Office of the District Magistrate or the Sub-Divisional Officer, as the case may be, shall prepare from Register XIV an annual consolidated abstract account for the whole sub-division in the form of Register XV.

A cash book of the fund shall also be kept in the form of Register XVI.

215A.

(i)

Disbursing Officers concerned with the Chaukidari Uniform Fund shall from the entries in Register XVI maintain a pro forma account in the form given below:-

Year

Opening balance.

Receipt (a).

Expenditure (b).

Balance at the end of the year.

1

2

3

4

5

(a)

[Credited to provincial revenues under the head "XXIII-Police"]

[Now see '0055-Police' the new major head.]

.

(b)

Expenditure recorded under P-Deposits and Advances-Deposit not bearing interest-Other Deposit Account-Civil Deposit on account of Police Funds-Chaukidari Uniform Fund.

Within fifteen days of the expiry of a financial year, each Sub-Divisional Officer shall in respect of his own jurisdiction prepare a balance sheet of the Chaukidari Uniform Fund from the pro forma account and transmit the same to the District Magistrate with the following certificate which shall be signed by the Sub-Divisional Officer:-"I certify that I have compared Registers XIV and XV with the pro forma accounts maintained for the Chaukidari Uniform Fund and found correct".

(ii)

On receipt of the balance sheets from all the Sub-Divisions with the certificates prescribed therein, each District Officer shall cause to be prepared a consolidated balance sheet of the Chaukidari Uniform Fund for the whole district.

(iii)

Each District Officer shall prepare an annual pro forma account in the form shown under clause (i), for the whole district from the balance sheet prepared under clause (ii).

A general agreement between receipts and expenditure should be maintained in all districts and in particular the

disbursing Officers should watch that the expenditure does not exceed the receipts.

(iv)

The balance in column 5 of the pro forma account maintained in clause (iii) shall not be taken to be available for expenditure. The expenditure will continue to be regulated by the memorandum explaining the procedure in connection with the Police Funds (vide memorandum incorporated at the end of Rule 204 of the Chaukidari Manual).

(v)

An account of receipts of the Chaukidari Fund shall be kept separately by the Treasury Officer in the register of receipts of the Police Department.

(vi)

The Treasury Officers will supply to the District Officer quarterly an advice list showing the opening balance, both receipts and expenditure and the closing balance in respect of the Chaukidari Uniform Fund.

(vii)

The balance sheets of the Chaukidari Uniform Fund prepared under clauses (i) and (ii) above shall be audited and compared quarterly with the treasury accounts by an Officer to be nominated for the purpose by the District Officer to whom the result of such audit shall be duly certified.

(viii)

Each District Magistrate shall submit his pro forma account to the Controlling Officer (Chief Secretary to Government, Political Department) as soon as the financial year is over.

(ix)

The Controlling Officer shall prepare a consolidated pro forma account in respect of the fund and forward the same in duplicate to the Accountant General, Bihar, for verification and to the Finance Department for information.

(x)

A copy of the said account as verified by the Accountant-General should be submitted by the Controlling Officer to Government in the Finance Department and to the Accountant General along with his revised and budget estimates. The actual of the preceding years and the proposed estimate should be shown year by year.

216.

The District Magistrate shall by written Order in the whole district fix the dates upon which the indents shall be submitted and they shall be succeeded by fresh indents at the intervals prescribed in Rules 205 and 206.

217.

(1)

Indents shall be prepared in the Office of the District Magistrate or the Sub-Divisional Officer, as the case may be.

(2)

For articles of equipment which are quoted in the periodical price list of the Buxar Central Jail, the Order should ordinarily be placed with that Central Jail. If however, the indenting Officer has reason to believe that he can obtain articles of as good a quality and at appreciably lower prices from another source he may call for tenders from outside firms as well as from the Central Jail. He must obtain samples both from the outside firms and from the Central Jail. If he proposes to place the Order with an outside firm he must send both sets of samples for advise to the Government Textile Expert at Patna. If the Textile Expert advises that the samples of the outside firm are equally as good as those of the Central Jail, the indenting Officer may place his Order with the outside firm specifying that the consignment will be checked against sample and rejected if it is not up to sample. On receipt of the consignment he should select a number of articles at random and send them to the Textile Expert for check against the sample. If the check is satisfactory, the consignment will be accepted, checked and distributed according to Rules 219 and 220. If not, it should be rejected.

(3)

Articles of equipment which are not quoted in the periodical price list circulated by the Central Jail, Buxar, should be purchased direct from firms, the Order being placed with the firm which, while offering articles of the prescribed quality, tenders at the lowest price.

218.

The articles indented for shall be despatched to the Sub-Divisional Officer, or in the case of Sadar sub-divisions to the Superintendent of Police, and until passed by the committee (vide Rule 219) they shall remain in-charge of a Police Officer deputed for the purpose.

219.

The articles supplied by the Jail Department or outside firm shall be examined on receipt by a committee. In Sub-Divisions the committee shall consist of the Sub-Divisional Officer (or in his absence the Second Officer, the Inspector of Police, and the head clerk of the Sub-Divisional Office. In sadar Sub-Divisions' it shall consists of the Reserve Sergeant-major and the Superintendent of the Office of the District Magistrate, and the Sadar Sub-Divisional Officer. The committee shall certify whether the articles have been received in full and in good condition. They shall also certify that the accounts have been examined by them to date and found correct or otherwise.

220.

After the uniforms have been passed by the committee in the manner laid down in Rule 219 they shall be despatched by the Reserve Inspector in the case of Sadar Sub-Divisions and by the Inspector in the case of outlying subdivisions to the Sub-Inspector in-charge of each thana. The uniforms on receipt by the thana Officer shall be kept in safe custody till the second chaukidari pay day of the year, when they shall be distributed to the dafadar and chaukidars concerned by the Presiding Officer, and the fact should be noted in columns 19 to 22 of Register no XIII, under the initials of the said Presiding Officer. An extract from this register, showing the entries in columns 1 to 4 and columns 19 to 22, should be sent to the district or sub-divisional office, as the case may be, alongwith the details of the payments for the second quarter of each year.

221.

Deleted.

Registers And Records

222.

The following Registers shall be kept in the Office of the District Magistrate and Sub-Divisional Officers:-

Register I-Of Union (vide Rule 4).

Register I(a)-Index of mauzas and villages in Unions.

Register II-Of Members of the Panchayat, dafadars and chaukidars (vide Rules 19, 30, 43, 176, 177, 203 and 222).

Register III-Of Collection & Register of Warrants (vide Rules 78 and 80).

Register IV-Receipts and disbursements (vide Rules 78, 80,105 and 115).

Register V-Of the proceedings of Tahsildars (vide Rules 100 and 222).

Register VI-Of the payments of Chaukidars (vide Rules 103 and 179).

Register VII-Of attachment of warrants under [Section 45]

[Now, Section 40 of Cr.P.C., 1973.]

(vide Rule 126).

Register VIII-Of fines and penalties credited to the Chaukidari Reward Fund (vide Rules 175,176,177, 181,182,183 and 184).

Register IX-Of challans for fines and penalties (vide Rules 175, 181, 182, 183,184 and 204).

Register X-Of Rewards paid (vide Rules 196, 198 and 222)

Register XI-of Badges and chevrons distributed (vide Rules 196, 197 and 222).

Register XII-Of collections from Unions on account of Chaukidar's equipment (vide Rule 211 and 220).

Register XIII-Of Chaukidari Uniform Fund (vide Rules 211, 220 and 222)

Register XIV-Of thanawari collections on account of chaukidar's equipment (vide Rule 213).

Register XV-Annual consolidated district abstract account of payments on account of chaukidar's equipment (vide Rule 215).

Register XVI-Cash book of equipment fund (vide Rule 215).

Register XVII-Of petitions.

Register XVIII-Of miscellaneous papers received.

Register XIX-Of miscellaneous papers issued.

Register XX-Of court-fees.

Register XXI-Cash date book.

Register XXII-Department order (vide Rule 235).

223.

The maintenance of unauthorised registers is prohibited.

224.

For the purpose of the destruction of records, the registers shall be classified follows:-

A-Register I.

B-Registers II, V, VI, VIII, IX, X, XI, XII, XIII, XIV, XV, XVI, XX, XXII.

C-Register XVIII, XIX, XXI.

225.

The reserve stock of forms appertaining to the Chaukidari Department shall be kept alongwith the general reserve of forms of the Magistrate's Office, and under the same Rules as regards their custody, issue, stocktaking, etc.

226.

All papers shall, as far as possible, be kept Union by Union, so that each file shall contain a record of the incidents appertaining to that Union.

Inspection

227.

The Chaukidari Department at headquarters shall be inspected by the District Magistrate and Deputy Magistrate in-charge, respectively, at least once a year.

The Chaukidari Department of Sub-Divisional Offices shall be inspected at least once a year by the District Magistrate and Sub-Divisional Officers, respectively.

The times of such inspection should be so arranged as to fall at intervals of about six months.

The inspection of the Chaukidari Department shall constitute a part of the inspection of district and Sub-Divisional Offices made by the Commissioner of the Division.

228.

It is desirable that an inspection of the accounts and proceedings on each Union shall be made locally at least once a year by the District Magistrate, Sub-Divisional Officer, Chaukidari Deputy Magistrate, a Sub-Deputy Magistrate, Superintendent or Assistant or Deputy Superintendent of Police.

The services of Honorary Magistrates and Rural Sub-Registrars should also be utilised for the purpose.

229.

At such a visit the Inspecting Officer should endeavour to have with him the office file appertaining to the Union, and should note the following among other points.

(a)

The suitability of the Union as constituted and the correctness of the registered list of villages in it.

(b)

The adequacy or otherwise of the number of chaukidars entertained, their physical fitness, condition of uniforms, etc.

(c)

The general range of the assessment list, with particular reference to the proportion of exemptions and the assessments levied upon the members of the panchayat, their relatives, the local zamindars, the owners of cutcherries and mahajans. It is difficult, if not impossible, for an Inspecting Officer to scrutinise every item in an assessment list, but by looking generally at the range of taxation (i.e., the proportion of high and low assessment) and by moving about the villages in the Union, giving opportunities for the representation of grievances, he can arrive at a very fair idea of the general incidence of the tax. Should the appearances point to the general unfairness of the assessment inquiries should of course be more detailed.

(d)

The accounts kept by the collecting member, with special reference to the amounts taken as commission, the carrying forward of balances, the realisation of penalties under Section 27, and the grant of regular receipts.

(e)

The entries in the minute and information book kept by the panchayat.

(f)

The regular realisation of the assessment (if any) from resumed Chakaran lands and the identification of such lands.

(g)

In the district specified in Rule 128:-

(i)

the regularity of the attendance of the chaukidars at parades before the President,

(ii)

the working of the system of process serving,

(iii)

the action of the President in cases of unnatural deaths (if any).

230.

Inspection should be conducted in a friendly spirit and with the view to assisting the panchayat in the discharge of their duties.

231.

Inspection notes should be recorded in the minute book kept by the panchayat.

232.

Officers of the Police, not below the rank of Sub-Inspector or the head constables in-charge of thanas or outposts, shall have the right to inspect and report to their superiors regarding the conduct of dafadars and chaukidars.

233.

Sub-Inspectors of Police should be acquainted with the panchayats in their jurisdictions, and should seek their assistance in the performance of their duties, but member of the panchayat should not be treated as in any way subordinate to the Police.

All Police Officers shall be entitled to the assistance of the dafadars and chaukidars in the execution of their duties (vide Rules 142 and 163).

Chakaran Lands

234.

Extracts from the Circular Orders of the Boards of Revenue, on the subject of chakaran lands, are reproduced below:-

* * * * *

"Chaukidari Chakaran land dealt with under Part II of the Chaukidari Act, VI (Beng. Chauk.) of 1870 are not to be considered and separate "estates" within the meaning of the Land Registration Act, VII (Beng. Chauk.) of 1870. Under Section 41 of Regulation VIII of 1793 they form part of the estate in which they are situated. Under Sections 48 and 5 of the Chaukidari Act, they are to be transferred to the 'zamindar' of such estate or tenure, who is defined (in Section 1) to be the person whose name is registered as the proprietor of an estate or rent-free tenure, and it has been Ruled by Government (vide Government letter No. 3020 J, dated 23rd July, 1894) that they are not to be treated as amalgamated with such estates. Transferred chaukidari chakaran lands are in reality, the property of the Village Chaukidari Fund. The settlement of them is offered at half rates to the zamindar, in the first instance, because half the services of the chaukidar were legally supposed to be his; but he is not bound to take settlement, and if he does not do so, the Collector, or the panchayat, can make a temporary settlement of the lands for the benefit of the Village Chaukidari Fund. Even if such lands are subsequently transferred by sale under Section 55, Act, VI (Beng. Chauk.) of 1870, or privately, this does not create them an estate within the meaning of that words as used in the Land Registration Act."

"The effect of the sale of chaukidari chakaran lands is clearly described in Section 55 of Act, VI (Beng. Chauk.) of 1870. The purchaser acquires the right to hold them free of incumbrance's, but subject to the chaukidari assessment. He cannot be said to hold them revenue-free, because at the time of the Permanent Settlement, revenue was assessed on them under Section 41 of Regulation VIII of 1793. The Board think that the exact legal status of the purchasers for such lands need not be settled by the Revenue Authorities. It is for the Civil Court to decide it. All that the Revenue Authorities are concerned with the payment of the half assessment to the Village Chaukidari Fund."

"It has been pointed out that it is necessary to provide for the compulsory record of mutations or transfers of lands in order that there may be no difficulty in ascertaining who is responsible for the payment of the half assessment. It cannot, however, in the Board's opinion, be difficult for the panchayat, with their local knowledge, to ascertain the name of the person in de facto possession of the lands, and who is liable to them for the half assessment.

It may be regarded as certain that the villagers, if not the panchayat, will protect their own pockets in this respect. So long as the Village Chaukidari Fund gets its half rental, it is not absolutely necessary that the Collector should know who actually holds the lands. The Collector alone can legally make the first transfer, and it is not clear that subsequent private transfers are valid. The Collector need to concern himself about the matter unless and until the panchayat applies to him under Section 54."

"In order, however, to maintain a record of the first transferees of chaukidari chakaran lands, a separate register should be opened (Register 80 of the Collectorate). The column of remarks in the register is intended for the record of transferee made after the original settlement under Section 59. Act, VI (Beng. Chauk.) of 1870, and they may be entered in it, subject to their being made under Section 55, and by private sale or arrangement, which should not be formally

recognised."

"When chakaran lands are sold under Section 55 of Act, VI (Beng. Chauk.) of 1870, in accordance with the provision of Act, XI of 1859 the particulars of the sale should be entered in Register 19 (sales for arrears of revenue) and should be distinguished from ordinary revenue sales by a letter say 'C' or by entry in "red ind"

"The assessment of cases on chaukidari chakaran lands transferred to zamindars under Part II of Act, VI (Beng. Chauk.) of 1870 should be made on the annual value which the transferee retains, that is to say, on the total annual value less the sum payable to the panchayat".

Miscellaneous

235.

All orders on the subject of the Chaukidari Department shall be recorded in an office order book.

236.

The issue of general district circular orders on the subject of chaukidari procedure is forbidden. Should experience prove that the instructions in the present Manual are defective in any respect, proposals for their amendment should be submitted for the orders of Government through the usual channels.

Register

Registers Nos. 1,1(a), II, VI and XII shall be issued in loose sheets and shall be bound up locally by thanas.

Register I

(Vide Rules 4 and 222)

Unions.

Thana.

Union no. Name

Settlement thana no. or jurisdiction list no. or

Boundary Commissioner's list no.

Name of mauza

Inhabited villages.

Population by Census.

Number of houses.

Area of chakaran lands in

Chakaran assessment

Reference to serial number of entry of chakaran
lands in Register

1

2

3

4

5

6

7

8

Remarks.

Columns 1 and 2 - Where there has been a cadastral survey, columns 1 and 2 should be filled in from the thana list of villages, prepared in accordance with Appendix of the Survey and Settlement Manual. Where there has been no cadastral survey, columns 1 and 2 should be filled in from the jurisdiction list revised (Boundary Commissioner's lists). Where there has been no cadastral survey and no revised jurisdiction list has been prepared the old Boundary Commissioner's list must be used pending completion of the cadastral survey.

Column 5. - It should always be distinctly shown in the register whether the house figure are as given in the census, or as taken from the assessment list of a specified year. It is preferable to show the census figures, but there are sometimes local reasons for not doing so.

[The register will be printed.]

Register I(A)

Index list of mauzas and inhabited villages within a thana

Thana.

Mauza arranged by serial

Mauza arranged alphabetically.

Inhabited villages arranged alphabetically.

Serial no.

Name of mauzas

Name of inhabited villages.

Union.

Name of mauza

Serial no. in column I.

Name of inhabited villages.

The mauza in which the village lies

The no. of the Union.

No.

Name

1

2

3

4

5

6

7

8

9

10

Remarks.

Columns 1 and 2. - Column 1 will contain the revised number which the village bears in the list of villages prepared in accordance with Appendix 4 to the Survey and Settlement Manual, or, if there has been no cadastral survey, in the revised jurisdiction list, in district where there has been no cadastral survey and no revised jurisdiction list has been prepared in the old Boundary Commissioner's list pending completion of a cadastral survey.

Register II

(Vide Rules 19, 30, 43, 176, 177, 203 and 222).

Members of the panchayat, dafadars and chaukidars

The register shall consist of an index in the following forms:-

Union

Total population

Total number of houses.

Number of chaukidars

Pages.

Number.

Name.

1

2

3

4

5

6

Remarks.

Followed by pages for each Union showing the names and castes of the members of the panchayat, the residences and postal addresses, and the dates of their appointment (One page), his residence, caste and the date of his appointment, with entries of rewards and punishments ordered (one page); the chaukidars in Union (one or two to a page) showing

their names, castes, residences and the date of their appointment with miles, of all rewards and punishment ordered etc., Details of each chaukidar's beat can be shown, if desired.

Register II

(Vide Rules 78 and 80) of Collection

Serial no.

Serial no. in a assessment list

Name of assessee.

Demand

Collections

Arrear.

Current annual.

Quarterly demand.

Arrear

1st quarter

Date of receipt and receipt no.

Amount.

Date of receipt and receipt no.

Amount.

1

2

3

4

5

6

7

8

9

10

Collections

2nd quarter

3rd quarter

4th quarter

Total collection.

Time barred or unrealizable

Balance

Remarks.

Date of receipt and receipt no.

Amount.

Date of receipt and receipt no.

Amount.

Date of receipt and receipt no.

Amount.

11

12

13

14

15

16

17

18

19

20

Register of Warrants

Serial number and date of warrants.

Name of defaulters and residence.

Serial number in assessment list

Tax

Penalty

Total

Amount remitted under Section 30.

Balance

Articles seized.

1

2

3

4

5

6

7

8

9

Articles sold.

By sale.

By voluntary payment

Amount returned to defaulter out of sale proceeds.

Signature of defaulters.

Amount credited into treasury.

Number and date of challans.

Remarks.

10

11

2

13

14

15

16

17

Register IV

(Vide Rules 78, 80, 105 and 115)

Receipts and Disbursements

Date

Jama.

Amount.

Date.

Kharach.

Amount.

1

2

3

4

5

6

Rs. P.

Rs. P.

Rs. P.

Rs. P.

Instruction. - The daily collection and disbursements should be shown as made or incurred. The accounts should be totalled quarterly.

Register V

(Vide Rules 100 and 222)

Proceedings of Tahsildars

Name of Union arrear list.

Date of arrear list.

Date of deputation.

Name of Tahsildar deputed.

Date fixed for return.

Date of final report by Tahsildar.

Tax.

Penalty.

Commission.

Total.

Number and date of challan crediting penalty.

Initials of Magistrate.

Remarks.

1

2

3

4

5

6

7

8

9

10

11

2

13

Rs. P.

Rs. p.

Rs. p.

Rs. p.

Rs. p.

Register VI

(Vide Rules 103, 179 and 222)

Payment of Chaukidars

Thana

Serial number of Union in the thana.

Serial number of Chaukidar.

Name of Dafadar or Chaukidar.

Rate of pay.

First quarter.

Second quarter.

Amount of fine to be deducted.

Net sum actually paid in cash.

Initials of Presiding Officer and date of payment.

Amount of fine to be deducted.

Net sum actually paid in cash.

Initials of Presiding Officer and date of payment.

1

2

3

4

5

6

7

8

9

10

Third quarter.

Fourth quarter.

Remarks.

Amount of fine to be deducted.

Net sum actually paid in cash.

Initials of Presiding Officer and date of payment.

Amount of fine to be deducted.

Net sum actually paid in cash.

Initials of Presiding Officer and date of payment.

11

12

13

14

15

16

17

Columns-Dafadars shall be distinguished from Chaukidars by the latter "D" in red ink after their names. The serial number in column shall be for the whole thana.

Register VII

(Vide Rules 126 and 222)

Attachment warrants under Section 45

Serial no.

Date of issue.

Name of Union

Number of Chaukidars whose pay is covered by warrant

Amount.

Initials of Nazir receiving warrants for execution

Date of return.

Amount realised.

Date of deposit in record room.

Remarks

- 1
- 2
- 3
- 4
- 5
- 6
- 7
- 8
- 9
- 10

Rs. p.

Register VIII

(Vide Rules 175,176,177,181,182,183,184 and 222)

Fines and penalties credited to the Chaukidari Reward Fund

Fine on panchayats under Section 8.

Name and designation of Magistrate imposing fine
and date of his order.

Name of panchayat fined; with name of village or
Union and of police station or out post.

Amount of fine imposed.

Amount realised.

Date of credit in treasury

- 1
- 2
- 3
- 4
- 5

Rs.

Rs.

Fines on chaukidars under Section 38.

Name and designation of officer imposing fine and
date of his order.

Name and beat number of chaukidar with name of
police-station or out post.

Offence for which fined.

Amount of fine imposed.

Amount realised.

Date of credit in treasury

- 6
- 7
- 8
- 9
- 10
- 11

Rs.

Rs.

Penalties under Section 27.

Name of panchayat or tahsildar from whom penalty
received with name of village or Union and of police-station or

outpost.

Date of credit in treasury.

Remarks.

12

13

14

Register IX

(Vide Rules 175, 181, 183, 184, 204 and 222)

Fine and penalty challans

Fines on panchayats under Section 8

Fines on chaukidars under Section 38

Penalties under Section 27

Number of challan.

Date.

Amount.

Number of challan

Date.

Amount

Number of challan

Date.

Amount

1

2

3

4

5

6

7

8

9

Rs. p.

Rs. p.

Rs. p.

Register X.

(Vide Rules 196, 197 198 and 222)

Rewards paid

Date of order for reward

Designation of officer granting reward

Name of chaukidar and beat number, also name and number of Union and name of thana

Nature of service rendered

Amount of reward

Date of despatch of cash for distribution

Remarks

1

2

3

4

5

6

7

8

Rs. p.

Register XI

(Vide Rules 196, 197, 198 and 222)

Date of order for reward.

Designation of officer granting reward

Name of Chaukidar and beat number also

name and number of Union and name of thana.

Nature of reward

Date of payment of cash gratuity carried by
stripe or badge.

Remarks.

1

2

3

4

5

6

7

8

9

10

Instruction. - If a badge or stripe, once given, is taken away subsequently for misconduct, the fact should be noted in column 10.

Register XII

(Vide Rules 196 and 222)

Recoupment of permanent advance of District Superintendent of Police on account of rewards

Date.

To whom paid

Number of Sub-Voucher.

Amount

Total of cash of recoupment bill.

Date of bill

Date of encasement

Remarks

1

2

3

4

5

6

7

8

Rs. p.

Rs. p.

Register XIII

(Vide Rules 211, 220 and 222)

Register showing demands, collections and balance of Chaukidari Uniform Fund for the year

Thana

Name of Union

Number of Union

Number of dafadars in each union.
 Number of chaukidars in each Union.
 Total amount due at Rs. 1.87 for each dafadar and
 at Rs. 1.45 for each chaukidar.
 One quarter of the amount in column 5, being the
 amount payable quarterly.
 Amount realised.
 First quarter
 Second quarter
 Date of realisation.
 Amount
 Initial of Presiding Officer.
 Date of realisation.
 Amount.
 Initial of Presiding Officer.

1
 2
 3
 4
 5
 6
 7
 8
 9
 10
 11
 12

Amount realised
 Number of dafadar's uniforms distributed.
 Number of chaukidar's uniforms distributed.
 Date of distribution.
 Initials of Presiding Officer.
 Remarks.
 Third quarter
 Fourth quarter
 Date of realisation.
 Amount
 Initial of Presiding Officer.
 Date of realisation.
 Amount.
 Initial of Presiding Officer.

13
 14
 15
 16
 17
 18
 19
 20
 21
 22

23

Register XIV

(Vide Rules 213 and 222)

Subdivision.....

Note. - (a) Allow 4 lines to each thana.

(b)

An abstract from the Register showing by thanas the totals of collections to be submitted to Sadar quarterly.

Register showing collection of cost of Chaukidari uniforms, thana by thana, for the year.....

Thana

Number of dafadars.

Number of chaukidars.

Quarterly demands for uniform

Payments into treasury

First quarter

Second quarter

Date

Challan number

Amount

Date

Challan number

Amount

1

2

3

4

5

6

7

8

9

10

Rs. p.

Rs. p.

Payments into treasury

Total payments for the year

Balance at the end of year

Remarks

Third quarter

Fourth quarter

Date

Challan number

Amount

Date

Challan number

Amount

11

12

13

14

15

16

17

18

19

Rs. p.

Rs. p.

Register XV

(Vide Rules 215 and 222)

District account of the Chaukidari Uniform Fund for the year.

[Note. - A total should be struck at the bottom for the whole district.]

Sub-division

Number of dafadars

Number of chaukidars

Amount due for uniforms for the year

Amount realised

Balance due

Date when realised

Jumpers

Pagris

Haversacks

1

2

3

4

5

6

7

8

9

10

Rs.p.

Rs.p.

Rs.p.

Cross belts

Badges

Balance

Date of Indent

Amount of indent

Date of receipt of uniforms

Date of examination by committee

Date of despatch

Remarks

11

12

13

14

15

16

17

18

19

Register XVI

(Vide Rules 25 and 222)

Receipts and Expenditure Account of the Chaukidari Uniform Fund

Note. - The balance in hand at the end of each year should be shown at the bottom of this account.

Receipt.

Expenditure.

Date

On what account.

Amount.

Total.

Allotment by Government for expenditure during
the year.

Date

On what account

Amount.

Total

1

2

3

4

5

6

7

8

9

Abstract of account for the whole year.

Receipt

...

...

...

...

...

...

...

X

Expenditure

...

...

...

...

...

...

...

...

X

Balance

...

...

...

...

...

...

...

Z

N.B. - The balance in hand at the end of the year will not be available for expenditure during the next year.

Register XVII

(Vide Rule 222)

Petition

No.

Name of petitioner and his place of residence.

Abstract of petition

Date of order.

Purport of order

Signature of the officer who received the
petition after registry.

Remarks

1

2

3

4

5

6

7

Register XVIII

(Vide Rules 222)

Miscellaneous papers received

No.

Date of receipt

From whom received

Nature of paper

date of order

Purport of order

Signature of the officer who received the paper
after registry.

Remarks.

1

2

3

4

5

6

7

8

Register XIX

(Vide Rules 222)

Miscellaneous papers issued

No.

Date of issue.

To whom issued.

Nature of paper.

Remarks.

1

2

3

4

5

Register XX

(Vide Rules 222)

Court-fees

Serial no. of document.

Process fees.

Other fees.

Date

Daily total

Remarks.

Process fees.

Other fees.

Total

1

2

3

4

5

6

7

8

Rs.

p.

Rs.

p.

Rs.

p.

Rs.

p.

Rs.

p.

Rs.

p.

Register XXI

(Vide Rule 222)

Case date book

Register XXII

(Vide Rules 222 and 235)

Departmental order book

Form A

(Vide Rule 6)

Form of sanad to a Member of the panchayat under Section 3 of Bengal Act VI of 1870

To

You are hereby appointed, under Section 3 of the Village Chaukidari Act, 1870 (Bengal Act VI of 1870), to be a member of the panchayat in the Union of in thana For the purpose of Section 45 of the Code of Criminal Procedure, you are also appointed to be a headman in all the villages comprising the above Union.

You are expected honestly and faithfully to discharge the duties imposed upon you by law.

Date

Given under my hand and seal

The
200
District Magistrate/Sub-Divisional Officer.
Form B
(Vide Rule 10)
Notice under Section 6 of Bengal Act VI of 1870

To
Member of the panchayat of
Union No. Thana

Where as has ceased to be a member of the panchayat of Union you are required hereby to submit direct to the District Magistrate/Sub-Divisional Officer of the name of a fit and proper person to be appointed in his place. Your reply should be submitted within 30 days of the receipt of this notice.

You should state the name, father's name, caste, residences, age and occupation of the person whom you nominate.

Date
Deputy Magistrate-in-charge
The
200
Sub-Divisional Officer.
Form C
(Vide Rules 23 and 36)
Notice under Section 35(1) of Bengal Act VI of 1870

Members of the panchayat of
Union No. Thana

Whereas| dafadarchaukidar| has vacated his appointment, you are required hereby to submit direct to the District|
MagistrateSub-Divisional Officer
of..... on or before the name of a fit and proper person to be appointed in his place.

Your nomination should be in the form shown below, which should be filled in and returned in original to the| District
MagistrateSub-Divisional officer
Deputy Magistrate-in-chargeSub-Divisional Officer

Nomination roll for the post of| dafadarchaukidar| in village
Union Thana

1. Name of nominee.
2. Father's name.
3. Caste.
4. Age.
5. Physical condition.
6. Residence.
7. Is the nominee related to the late dafadar chaukidar.
8. Is his character good
9. Are any of his relations bad characters? If so, give details.
10. Can he read and write (more than his name only)?
11. Thumb prints of nominee.

Signature of the member of the panchayat.

Form D
(Vide Rules 27 and 40)

Form ofSanadto| dafadarchaukidar| under Section 35 of Bengal Act VI of 1870.

son of
caste
village
Police-stationoutpost
district

at present a resident or village

Police-stationoutpost

district

district

is hereby appointed, under the provisions of Section 35 of Bengal Act VI of 1870, as subsequently amended, to be a chaukidar with the duties of a dafadar/ chaukidar in the Union.

Police-stationoutpost

district

Date

The

200

District Superintendent of Police Chaukidari Deputy Magistrate.Sub-Divisional Officer.

Form E

(Vide Rule 79)

Union Tax receipt.

Chaukidari (counterfoil).

No. of receipt.

Date of payment.

Union.

Village.

Name of assessee.

Serial No. in collection register.

Amount paid Rs. a. p.

Particulars of amount paid.

Arrears.

Current tax.

Penalty.

Total.

Signature of collecting member.

Form F

(Vide Rule 115)

Acquittance roll of chaukidars

Month

Date of payment

Amount paid.

Signature of collecting member

Signature of Officer Presiding over pay parade

Remarks

1

2

3

4

5

6

Form G

(Vide Rule 173,174 and 176)

Punishment proceedings

Name of chaukidar with Union and number and name of police-station.

Charge.

Explanation of chaukidar.

His previous punishment and rewards, if any during preceding 12 months.

Remarks of reporting authority.

Remarks of supervising authority.

Final order with date.

- 1
- 2
- 3
- 4
- 5
- 6
- 7

Form H

(Vide Rules 193,194 and 203)

Recommendation for a reward to a chaukidar Thanas.

Name of chaukidar and name of Union

Nature of good service

Previous goods service, if any.

Remarks of Sub-Inspector.

Remarks of Inspector.

Final order

- 1
- 2
- 3
- 4
- 5
- 6

Counter Foil

Name of chaukidar and name and number of Union and Thanas.

Amount of reward, Signature of the sanctioned thana officer.

Form I

(Vide Rule 204)

Balance sheet of Chaukidari Reward Fund

Balance sheet of the District Chaukidari Reward Fund of district for quarter ending

Receipts.

Amount.

Disbursement.

Amount.

Remarks.

Balance of preceding

quarter.Amount of fines or panchayats under Section 8

credited during quarter.Amount on fine on chaukidars under

Section 38 credited during quarter.Amount of penalties under

Section 27 credited during quarter.Amount contributed by

Government from provincial revenue.

Total....

Rs.

p.

Rewards paid to chaukidars.

Total...Balance.

Grand total

Rs.

p.

Countersigned.

Countersigned.

Date.

Magistrate

Treasury-Officer.

The

199.....

Related AI tags, queries and research notes

Translation